

Course content audit export — mt-alcohol

Exported 2026-05-13. Single-file snapshot of every regulatory claim, statute citation, module narrative, quiz question, exam question, and infographic spec in this course. Built for independent AI verification — paste this whole file into another AI session and ask "verify every regulatory and statutory claim against current law in this state."

Course configuration

- **Title:** Montana Responsible Alcohol Sales & Service - On-Premises
- **Subtitle:** RASS On-Premises Track (≥2 hours) per HB 157 and ARM 42.13.901-907
- **State:** MT (Montana)
- **Slug:** mt-alcohol
- **Law reference:** MCA 16-4-1005, 16-4-1006 (HB 157, HB 196, eff. 1/1/2026); ARM 42.13.901-907
- **Regulator:** Montana Department of Revenue, Cannabis and Alcohol Regulation Division (CARD)
- **Regulator contact:** DORCARDRASS@mt.gov
- **Approval status:** training_only
- **Approval status note:** Prepared for submission to Montana CARD for approval as a private RASS training program under ARM 42.13.906. Content reflects the post-March 7, 2026 amendments to ARM 42.13.901-907 implementing HB 157 (on/off-premises split) and HB 196 (digital ID coverage).
- **Cert prefix:** CRMT
- **Cert validity:** 3 years
- **Min hours:** 2
- **Total est minutes:** 125
- **Languages:** en, es
- **Exam:** 40 of 60, 80% to pass, proctored=false, retakes=unlimited
- **Min content minutes:** 120

Study Buddy topic keywords (used by the AI tutor — should reflect the law accurately):

- alcohol effects on the body
- BAC and absorption
- actually-apparently-obviously intoxicated standard (MCA 16-3-301(4)(b))
- Montana acceptable IDs (ARM 42.13.902) including digital IDs (HB 196) and tribal IDs
- Montana dram shop (MCA 27-1-710) three-trigger framework
- Montana DUI (MCA 61-8-1002)
- Montana sale hours (MCA 16-3-304)
- Montana license categories

- ARM 42.13.101 progressive penalty schedule
- 60-day-from-hire and 3-year renewal cycle (MCA 16-4-1005)

Module list (from course-config):

ID	Title	Type	Est. min
01	Welcome and Course Overview	mixed	5
02	Alcohol and the Body	universal	15
03	Recognizing Intoxication and Refusing Service	universal	25
04	Checking Identification (Including Digital IDs)	mixed	20
05	Sales to Minors	state_specific	10
06	Dram Shop and the Three Liability Types	state_specific	20
07	Hours, Promotions, and Montana License Categories	state_specific	15
08	Montana DUI Law and the Server's Role	state_specific	15

Learning outcomes

Knowledge outcomes:

- **K1:** Montana statutory framework: MCA 16-4-1005 (60-day from hire, 3-year renewal), MCA 16-4-1006 (HB 157 on/off split, HB 196 digital ID), ARM 42.13.901-907
- **K2:** Effects of alcohol on the body: BAC formation, absorption rates, factors (gender, weight, food, medication), tolerance vs. impairment
- **K3:** Standard drink equivalency (12oz beer / 5oz wine / 1.5oz spirits) and Montana's >0.5% ABV definition (MCA 16-1-106(4))
- **K4:** Behavioral and physical signs of intoxication; the 'actually, apparently, or obviously intoxicated' standard (MCA 16-3-301(4)(b), 16-6-304)
- **K5:** Acceptable forms of identification in Montana per ARM 42.13.902, including state/Canadian DLs, armed-services IDs, passports, MT temporary/probationary licenses, MT tribal IDs, US permanent resident cards, and government-certified digital IDs (HB 196)
- **K6:** Strategies underage persons use to obtain alcohol and how to detect them
- **K7:** ARM 42.13.101 progressive penalty schedule for sales to minors (\$250 / \$1,000 / \$1,500 + suspension / revocation)
- **K8:** MCA 16-6-305(1)(a) narrow exceptions for provision of alcohol to a person under 21: nonintoxicating quantity by parent/legal guardian, physician/dentist (medicinal), licensed pharmacist (with prescription), or ordained minister/priest (religious observance); licensee opt-in governs on-premises
- **K9:** Three liability types under MCA 27-1-710: criminal, civil, administrative
- **K10:** Montana dram shop framework (MCA 27-1-710): three triggers (underage with no reasonable attempt to ID, visibly intoxicated, forced/coerced consumption); \$250K noneconomic and \$250K

punitive damage caps; certified-mail notice within 180 days of the sale or service; 2-year statute of limitations from the sale or service

- **K11:** Montana hours of sale (MCA 16-3-304): 8am-2am for licensed retail; the no-below-posted-price rule; promotion compliance requirements (posted-price, advertising, and any required DOR/CARD approvals)
- **K12:** Montana license categories: all-beverage, restaurant beer-and-wine, off-premise beer-and-wine, manufacturer sample-room, catering endorsement, special permits (16-4-301)
- **K13:** Montana DUI law (MCA 61-8-1002): per-se BAC 0.08 noncommercial / 0.04 commercial / 0.02 under-21; 5 ng/mL THC; aggravated DUI threshold (BAC $\geq$ 0.16 or refusal-with-prior)
- **K14:** Implied consent law (MCA 61-8-1016): 6-month suspension on first refusal, 1-year on second within 5 years; refusal admissible in court
- **K15:** MCA 61-8-1007 DUI penalty escalation across 1st through 4th offense (4th = felony, lifetime lookback)

Performance outcomes:

- **P1:** Identify behaviors and physical signs that meet the 'actually, apparently, or obviously intoxicated' standard
- **P2:** Calculate the latest valid DOB for a legal sale today (today minus 21 years)
- **P3:** Inspect a Montana driver's license and identify its security features and expiration
- **P4:** Verify a government-certified digital ID per HB 196
- **P5:** Apply the MCA 16-6-305(1)(a) exception correctly: nonintoxicating quantity, by one of the four listed providers, with licensee opt-in on-premises
- **P6:** Refuse service in a firm but respectful way; document the refusal in the incident log
- **P7:** Apply the dram shop three-trigger test (MCA 27-1-710) to a real-world over-service scenario
- **P8:** Identify Montana sale-hour violations and license-class boundaries
- **P9:** Calculate a customer's likely BAC vs. the relevant per-se limit and decide whether to call a ride or escalate
- **P10:** Implement house policies: ID-checking thresholds, refusal scripts, manager escalation, incident logs

Module 01: Welcome and Course Overview

What to expect from your Montana RASS On-Premises training

Estimated minutes: 5 · Type: mixed

Module learning outcomes:

- K1 (knowledge): Understand Montana's RASS framework: who must train, when, and why (MCA 16-4-1005, MCA 16-4-1006 (HB 157, HB 196))

Section s1: Welcome to Montana Responsible Alcohol Sales and Service Training (scope: universal)

[text] Welcome to CertReady's Montana Responsible Alcohol Sales and Service training, the on-premises track. Over the next two hours you will learn the practical knowledge and the Montana-specific law you need to serve, mix, or supervise alcohol service legally and safely under Montana's Responsible Alcohol Sales, Service, and Delivery Act.

[callout/info] **About 'RASS'.** You'll see this acronym throughout the course and on Montana's verification database. RASS stands for Responsible Alcohol Sales and Service. As of January 1, 2026, the Act is officially named the Responsible Alcohol Sales, Service, and Delivery Act (HB 211 added 'Delivery' to cover third-party drivers), but the industry still calls the program RASS. When we say 'Montana RASS,' that's what we mean.

[callout/law] **MCA 16-4-1005:** Every licensee must ensure that each employee authorized to sell, serve, or deliver alcohol, and each immediate supervisor, completes a state-approved training program **within 60 days of the employee's date of hire and every 3 years thereafter.**

[text] Effective **January 1, 2026**, Montana law requires two distinct training tracks: an on-premises course of **at least two hours** (this course), and a separate off-premises course of **at least one hour**. The two tracks share a lot of universal content but the on-premises track goes deeper on intervention, dram shop, and table-side cut-off scenarios because that is where most over-service incidents happen.

[callout/info] **Why this matters now.** HB 157 (2025), HB 196 (2025), and HB 211 (2025) changed Montana's alcohol-server framework on January 1, 2026. The on/off split is new. Digital ID coverage is new. And third-party delivery is now its own training track. Even servers who took an older RASS course need refreshed training to be compliant.

Section s2: What you will learn (scope: universal)

[list/numbered] Course modules • **Module 2 — Alcohol and the body.** BAC, absorption, standard drinks, what counts as alcohol under Montana law. • **Module 3 — Recognizing intoxication and refusing service.** The Montana 'actually, apparently, or obviously intoxicated' standard, behavioral and physical cues, refusal scripts. • **Module 4 — Checking IDs.** Montana's acceptable ID list including digital IDs (new in 2025) and tribal IDs, fake-ID detection, calculating the legal date of birth. • **Module 5 — Sales to minors.** Progressive penalty schedule, the narrow MCA 16-6-305(1)(a) exception (parent/guardian/medical/religious), common minor tactics and how to refuse them. • **Module 6 — Dram shop and the three liability types.** When a server can be sued, how Montana's three-trigger framework works, the damage caps that apply. • **Module 7 — Hours, promotions, and Montana license categories.** When you can sell, what promotions are allowed, how license types differ. • **Module 8 — Montana DUI law and the server's role.** Per-se BAC limits, implied consent, what to do when a customer wants to drive home.  infographic spec: Course-roadmap timeline as a horizontal stepped path with eight nodes: M1 Welcome, M2 Alcohol & Body, M3 Recognizing Intoxication, M4 IDs, M5 Sales to Minors, M6 Dram Shop, M7 Hours & License, M8 DUI, plus a final Exam node. Each step shows module title, estimated minutes, and a small thematic icon. Brand: navy header, teal accent, slate body. Used as the visual hook on the Welcome page so students see the whole arc of the course at a glance. CertReady wordmark in a corner.  infographic asset: assets/infographics/MT-ALCOHOL-M01-s2-c1.png

[text] After all modules are complete and you have spent **at least 120 minutes** on content, the final exam will unlock. The exam is **40 multiple-choice and true/false questions** drawn from a **60-question pool**. You need **80% to pass**. Retakes are unlimited; we want you to actually learn the material, not just guess your way through.

Section s3: Your certificate and how it gets to your employer (scope: state)

State note: Montana general RASS does not have a separate state portal. The provider certificate IS the credential.

[text] When you pass the final exam, CertReady issues you a certificate immediately. Your CertReady certificate is your Montana training credential. There is no separate state-issued license to chase. Save the PDF, send a copy to your employer, and keep your certificate number handy in case anyone needs to verify it.

[callout/info] **Verification.** Anyone (your employer, an auditor, the regulator) can verify your training at svc.mt.gov/dor/liquorserver/public/certsearch.aspx using your last name and date of birth. CertReady reports your completion to that database per the agreed cadence with Montana CARD.

[callout/tip] **Did your employer sign you up?** If your bar, restaurant, or restaurant group is using CertReady, they have a business dashboard at certready.org/business. They can see your training progress in real time, get a notification when you pass, and see your expiration date so they can remind you when it's time to renew. You don't need to do anything for this. If they enrolled you with their CertReady code, the link is already set up. You'll still get your own copy of the certificate by email.

[text] Your certificate is valid for **3 years** from the completion date. About **60 days before it expires**, CertReady will email you a reminder so you can re-take and stay compliant.

Module quiz

Quiz: Welcome Quiz (pass 80%) Qq1: Under MCA 16-4-1005, when must a new on-premises employee complete their RASS training? a) Before their first shift b) Within 30 days of hire c) Within 60 days of hire ✓ d) Within 90 days of hire Qq2: How often must a Montana RASS-trained employee renew the training? a) Every year b) Every 2 years c) Every 3 years ✓ d) Every 5 years Qq3: If you work behind the bar at a restaurant, which Montana RASS track applies to you? a) On-premises (at least 2 hours) ✓ b) Off-premises (at least 1 hour) c) Either, you can choose d) Both — you must complete both tracks Qq4: What score do you need on the final exam to pass? a) 60% b) 70% c) 75% d) 80% ✓ Qq5: In your own words, what makes Montana's 2026 RASS training different from a generic alcohol-server course? keywords: on-premises, off-premises, two hours, 120 minutes, digital ID, HB 196, HB 157, ARM 42.13, Montana law, MCA 16-4-1006, tribal

Module 02: Alcohol and the Body

BAC, absorption, standard drinks, and how Montana defines an alcoholic beverage

Estimated minutes: 15 · Type: universal

Module learning outcomes:

- K2 (knowledge): Effects of alcohol on the body (*ARM 42.13.907(1)(a)*)
- K3 (knowledge): Standard drink equivalency and Montana's >0.5% ABV definition (*MCA 16-1-106(4)*; *ARM 42.13.907(1)(b)*)
- P1 (performance): Translate menu items into standard-drink equivalents in real time (*ARM 42.13.907(1)(a)*)

Section s1: What counts as alcohol in Montana (scope: state)

State note: Montana's statutory definition; differs from some neighboring states.

[text] Montana defines an alcoholic beverage as any beverage with **more than 0.5% alcohol by volume** (MCA 16-1-106(4)). That includes beer, wine, spirits, cider, hard seltzer, ready-to-drink cocktails, and pre-mixed canned drinks. Anything stronger than non-alcoholic beer falls under Montana's alcohol laws and triggers every rule in this course: ID checks, refusal-of-service obligations, dram shop liability under MCA 27-1-710, and the hours-of-service rules in MCA 16-3-304.

[callout/law] **MCA 16-1-106(4):** "Alcoholic beverage" means a compound containing **more than 0.5% of alcohol by volume** that is produced for human consumption.

[callout/info] **The 0.5% line at the bar.** A few common items sit close to the threshold. Most kombucha is 0.5–2.5% ABV; the high end is alcohol under Montana law. "Non-alcoholic" beer is legally capped at 0.5% ABV, so it falls outside the rules, but a so-called "NA" craft option that prints 0.6% is in. Hard kombucha (3–9%) is fully alcoholic. When a customer says "it's just a kombucha," check the label.

Section s2: Standard drinks: the math behind every pour (scope: universal)

[text] Servers and bartenders need to think in **standard drink equivalents** because that is the unit alcohol affects the body in. The CDC and NIAAA define one standard drink as approximately **14 grams (0.6 fluid ounces) of pure ethanol**. That works out to: **12 oz of beer at 5% ABV, 5 oz of wine at 12% ABV, or 1.5 oz of distilled spirits at 40% ABV (80 proof)**. All three put the same amount of alcohol into the bloodstream.

[list/bullet] Real bar pours: how many standard drinks • 12 oz domestic beer at 5% ABV (Coors Banquet, Bud Light, Miller Lite) = **1.0 standard drink**. • 12 oz craft lager at 6.5% ABV = **1.3 standard drinks**. • 16 oz craft IPA at 7.5% ABV = **1.9 standard drinks**. • 16 oz strong craft beer at 9% ABV = **2.3 standard drinks**. • 5 oz wine pour at 12% ABV = **1.0**. A restaurant 6 oz pour at 14% ABV (most California reds) = **1.4**. • 1.5 oz spirit pour at 40% ABV (one shot) = **1.0**. A 2 oz "tall" = **1.3**. A 3 oz double = **2.0**. • 12 oz hard seltzer at 5% ABV = **1.0**. A 9% ABV version = **1.8**. • Margarita with 2 oz tequila + 1 oz triple sec (typical bar pour) = **~1.7 standard drinks**. A "long pour" version with 3 oz tequila = **~2.3**.

[callout/warning] **The pitfall.** Customers count drinks. The body counts ounces of pure alcohol. A customer who tells you "I've only had two" but those two were 16 oz strong craft beers at 9% ABV has had

the equivalent of **almost 5 standard drinks**. The lesson: in your head, translate every order to standard drinks before you decide whether to pour the next one.

Section s3: How alcohol moves through the body (scope: universal)

[text] Alcohol is absorbed mostly through the small intestine. About **20% absorbs through the stomach lining**; the rest moves into the small intestine and crosses into the bloodstream. Once in the blood it reaches every organ within minutes—brain, heart, liver, kidneys. The brain is the one that matters for service decisions: alcohol depresses central nervous system function, which is why coordination, judgment, and reaction time deteriorate before slurred speech and stumbling become visible.

[callout/info] **The 20–40 minute window.** Alcohol takes 20 to 40 minutes to fully absorb after a drink. So a customer who pounded three shots at 9:00 PM may not show full impairment until 9:30 PM, when their BAC is still climbing. **The most dangerous moments often come AFTER you've stopped serving someone**—the alcohol they already drank is still hitting them. This is why "one for the road" is the worst possible service decision: you are pushing their final BAC even higher when it's already rising on its own.

[list/bullet] Factors that change how fast alcohol affects someone • **Body weight:** smaller people reach a given BAC on fewer drinks. A 110 lb adult reaches 0.08 BAC on roughly 2 drinks in an hour; a 220 lb adult needs about 4. • **Sex:** at the same weight, women typically reach a higher BAC than men because of body composition (more body fat, less water to dilute alcohol) and lower stomach alcohol-dehydrogenase activity. • **Food:** drinking on a full stomach slows absorption substantially—peak BAC can be 30–40% lower than the same drinks on an empty stomach. Food slows absorption; it does not eliminate it. • **Rate of consumption:** the liver clears about **0.015 BAC per hour**—roughly one standard drink per hour. Drink faster than that and BAC rises. Drink slower and the liver keeps up. • **Medications:** opioids, benzodiazepines (Xanax, Valium), antihistamines (Benadryl), and many antidepressants amplify alcohol's effects. A customer on these meds at 0.05 BAC may behave like a customer at 0.10 BAC. • **Tolerance vs. impairment:** a regular heavy drinker may not LOOK impaired at a BAC that legally counts as impaired. Tolerance hides the visible signs—it does not change the BAC, the legal liability, or the reaction-time deficit.

[text] **Tracking a real customer.** Here's how the math plays out at the bar for one customer over 90 minutes:

[list/bullet] The setup • **Customer:** 160 lb male • **Drinks:** 3 × 12 oz domestic beer at 5% ABV (3 standard drinks) • **Pace:** one drink every 15 minutes between 8:00 and 8:45 PM • **Liver clearance:** about 0.015 BAC per hour (~1 standard drink/hour) • **Consumption rate:** 4× the liver's clearance rate

[list/bullet] Timeline of impairment • **9:00 PM** — BAC approximately **0.07**, just under Montana's 0.08 per-se DUI limit • **9:00–9:30 PM** — BAC keeps climbing because alcohol he already drank is still absorbing • **9:30 PM** — BAC likely above **0.08**, even if he stops drinking now • **9:45 PM** — clear impairment if you served a 4th drink at 9:00 PM  infographic spec: BAC-over-time line chart for this customer: x-axis = time 8:00 PM to 10:00 PM, y-axis = BAC 0.00 to 0.10, rising curve from drinks 1-3, continued rise during the 20-40 minute absorption window, horizontal dashed line at 0.08 labeled 'per-se'

DUI', highlighted region after 9:30 PM showing the danger zone. Brand colors: navy curve, teal threshold line, white background.  infographic asset: assets/infographics/MT-ALCOHOL-Mo2-s3-c6.png

[callout/warning] **The trap.** A customer who reads as "still legal" right now may cross the line in the next 20–30 minutes from alcohol they already drank. **Don't time service decisions on the current pour.** Time them on where the BAC will be when the customer leaves and gets behind a wheel.

Section s4: What BAC looks like in behavior (scope: universal)

[text] BAC translates to behavior in roughly predictable bands. You don't need to estimate exact BAC—you need to recognize the band a customer is in and adjust service accordingly. The bands below are based on NHTSA driving-impairment research and are useful for service decisions, not for diagnosis.

[list/bullet] BAC bands and what you'll see • **0.02–0.04 (one to two drinks).** Mild relaxation, slight mood lift. Most people show no obvious outward signs. • **0.05–0.07 (two to three drinks).** Lower inhibitions, reduced judgment, slightly slowed reaction time. Customers may laugh louder, talk more, get more familiar. Driving is impaired; **a Montana CDL holder is over the per-se limit at 0.04, and an under-21 driver is over at 0.02.** • **0.08–0.12 (the per-se DUI band).** Slurred speech, slowed reflexes, impaired coordination, balance issues, loss of fine motor control. **This is the legal-impairment line for adults driving in Montana under MCA 61-8-1002.** • **0.13–0.20.** Visible drunkenness. Stumbling, dropping things, bloodshot or glassy eyes, loud or argumentative behavior, possible nausea. **This person should not have been served the last drink.** Continued service exposes the establishment to dram shop liability under MCA 27-1-710. • **0.20+.** Risk of blackout, loss of consciousness, vomiting. Above 0.30, medical-emergency risk becomes real (alcohol poisoning, respiratory depression). Call 911—do not just send them home.

[callout/warning] **Tolerance hides the warning signs but not the BAC.** A regular drinker may show none of the 0.13–0.20 signs at a BAC of 0.18. Their breath, slurring, and stumbling are masked by tolerance. **Their judgment, reaction time, and impairment are still compromised at the same BAC.** Tolerance can hide visible cues, but it does not reduce impairment or make service safer. For service decisions, do not rely on "they look fine" if drink count, pace, or behavior suggests impairment. (Civil dram-shop liability under MCA 27-1-710 depends on the statutory triggers — including evidence of visible intoxication at the time of service — covered in Module 6.)

Section s5: Two scenarios you'll see at a Montana bar (scope: state)

[scenario] Q: What is the right call? - Pour the fourth—she had food, she's not stumbling. — feedback: She has consumed about 5 standard drinks in 90 minutes. Even with the food, her estimated BAC is 0.10–0.13 —legally impaired. Food slows absorption; it does not bring BAC back to zero. Continuing to serve pushes her deeper into impairment. - Slow service: water, food, and time before pouring another. Suggest a non-alcoholic option. ✓ correct — feedback: Right call. Her BAC is climbing into per-se DUI territory. Slowing service buys the liver time to catch up and keeps both her and the bar safe. Offering a water back or a soda is not a refusal—it is a save. - Refuse and ask her to leave immediately. — feedback: She is not visibly disorderly. The right step is slowing service first. A hard refusal is appropriate when behavior crosses into the 0.13–0.20 visible-impairment band, not at the first sign her BAC is approaching the limit.

[scenario] Q: What is the right call? - Serve him—he's a regular, he's calm, he has tolerance. — feedback: Tolerance hides the visible signs but not the BAC. He has consumed about 7.6 standard drinks in 2.5 hours. His estimated BAC is 0.13–0.16—nearly twice the legal driving limit. If he drives home and crashes, you and the bar are named in the dram-shop suit. "He looked fine" is not a defense. - Stop service, offer water and a ride. Explain you cannot serve him another at this point. ✓ correct — feedback: Right call. His BAC is into the 0.13–0.16 range whether he looks impaired or not. Stopping service, offering water, and lining up a ride home is the legally correct and personally safer answer for everyone. Tolerance is not a get-out-of-jail card for the establishment. - Switch him to a low-ABV beer (3.5% session lager) and reassess in 30 minutes. — feedback: He's already past the legal driving limit. Switching to a lower-ABV beer doesn't bring his BAC down—the alcohol he already has on board still has to clear his system. The right step is to stop service entirely and shift the conversation to water + a ride home.

Section s6: What this means for service decisions (scope: universal)

[text] All of this physiology rolls up into one practical rule: **you cannot serve based on drink count alone**. A 240 lb regular drinker who has had four beers in two hours may be fine. A 110 lb first-timer who has had two cocktails on an empty stomach may be visibly intoxicated. You watch the person, not the receipt.

[text] In practice, the working tools for monitoring a customer are: count standard drinks (not menu items), track time on premises, watch for behavioral cues from the BAC bands above, and pay attention to context—has this person eaten, are they on medications, did they show up already affected? When in doubt, slow the service. The goal is not always to refuse the next drink; the goal is to keep the customer at a BAC that is safe for them and legal for you to serve.

[callout/tip] **The slowing-service playbook.** These are not refusals—they are how seasoned bartenders keep customers and licenses safe at the same time: • Suggest a water back with the next drink. • Suggest food: "the kitchen still has wings, want me to grab you an order?" • Slow the pour: take a longer route back to the bar, restock, take 5 extra minutes between rounds. • Switch to lower-ABV options: "how about a Coors Banquet? Great session beer." • Engage in conversation: a chatty bartender is a slower-pour bartender. • If the table is having a serious moment, refill water glasses and suggest the appetizer menu.

Module quiz

Quiz: Module 2 Quiz (pass 80%) Qq1: Under MCA 16-1-106(4), what is the minimum alcohol-by-volume that makes a beverage 'alcoholic' under Montana law? a) More than 0.5% ✓ b) 1.0% c) 3.2% d) 5.0% Qq2: A customer orders a 16 oz craft IPA at 7.5% ABV. About how many standard drinks is that? a) 1.0 b) 1.4 c) 1.9 ✓ d) 3.0 Qq3: About how much BAC does the liver clear per hour, on average? a) 0.005 b) 0.015 ✓ c) 0.05 d) 0.10 Qq4: A regular heavy drinker who 'doesn't look drunk' is safe to keep serving even if they have had a lot. true) True false) False ✓ Qq5: Why is the 20–40 minute window after a drink important for service decisions? a) Customers usually leave the bar in that window b) BAC keeps rising during that window even after the customer stops drinking ✓ c) The liver speeds up alcohol clearance during that window d) Food fully neutralizes the alcohol in that window Qq6: Name two factors that can speed up how quickly a customer reaches a high BAC. keywords: empty stomach, no food, small body weight, smaller body, fast drinking, quick consumption, medication, drugs, low body weight, weight

Module 03: Recognizing Intoxication and Refusing Service

Montana's 'actually, apparently, or obviously intoxicated' standard and how to refuse cleanly

Estimated minutes: 25 · Type: universal

Module learning outcomes:

- K4 (knowledge): Behavioral and physical signs of intoxication; the 'actually, apparently, or obviously intoxicated' standard (*MCA 16-3-301(4)(b); MCA 16-6-304*)
- P1 (performance): Identify behaviors that meet the Montana intoxication standard (*MCA 16-3-301(4)(b)*)
- P6 (performance): Refuse service in a firm but respectful way; document in incident log (*ARM 42.13.907(1)(g)-(h)*)

Section s1: The Montana legal standard (scope: state)

State note: MCA 16-3-301(4)(b) and 16-6-304 use a specific phrase: 'actually, apparently, or obviously intoxicated.'

[text] Montana law uses a specific test for over-service. Under **MCA 16-3-301(4)(b)** and **MCA 16-6-304**, you must not sell or serve alcohol to a person who is **'actually, apparently, or obviously intoxicated.'** The three-part phrase is intentional. **'Actually'** covers a person who really is impaired — even if the signs are subtle. **'Apparently'** covers a person who looks impaired to a reasonable observer; this is the standard that applies most often at the bar. **'Obviously'** covers the loud, falling-down case that anyone could see from across the room.

[callout/law] **MCA 16-3-301(4)(b):** A person may not sell or give alcoholic beverages to a person who is **actually, apparently, or obviously intoxicated.**

[text] **Practical translation.** If you have any reasonable belief the person is impaired, the law treats that as enough. You do not need a breathalyzer. You do not need a confession. The 'apparent' test is your professional judgment based on what the person is doing in front of you. The reason Montana wrote the standard this way is to give servers cover when they make the call: a court will not require you to prove a customer's exact BAC before refusing a pour. The standard is what a reasonable server would conclude.

[callout/info] **Why three prongs and not one (for the service-side rule).** Some alcohol-server laws use 'visibly intoxicated' as the only test. Montana's service-side rule under MCA 16-3-301(4)(b) and MCA 16-6-304 uses a broader standard — 'actually, apparently, or obviously intoxicated' — so a server is expected to refuse not only on visible cues but also on what the server actually knows about the customer (e.g., the third double in 20 minutes). Tolerance does not change the standard for refusing service. *Note: Montana's civil dram-shop trigger under MCA 27-1-710 uses different statutory language ('visibly intoxicated' plus 'knew or should have known'). That is covered in Module 6.*

Section s2: Behavioral and physical signs (scope: universal)

[text] BAC translates to behavior in roughly predictable bands. Module 2 covered the BAC physiology; here we tie it to what you actually see across the bar. The cues below are drawn from NHTSA driving-impairment research and the TIPS curriculum that most server-training programs use as a baseline. You don't need to estimate exact BAC. You need to recognize the cluster of cues that puts a customer into the 0.08+ range — the legal-impairment line — so you can stop pouring before the bar is on the hook.

[list/bullet] Behavioral cues • **Slurred or thick speech** — words run together, S sounds soften, sentences trail off. • **Repeating the same story or question** — the customer asks twice for the same drink, or tells you the same anecdote you already heard. • **Inability to focus eyes** on the menu, the bar tab, or the person across the table. • **Loss of inhibition:** louder than the room, overly familiar with you or other customers, jokes that cross lines they wouldn't normally cross. • **Mood swings** between cheerful, weepy, and angry within minutes of each other. • **Bragging about consumption** — "I've had six already and I'm fine" or "I can drive home, I just live around the corner." • **Aggressive or argumentative tone** — picking fights with friends, complaining about prices they accepted earlier, challenging your refusal politely or rudely.

[list/bullet] Physical cues • **Glassy, bloodshot, or droopy eyes** — pupils may also dilate or react slowly to changes in light. • **Unsteady walk** — bumping into chairs, grabbing the bar to balance, missing a stool when sitting down. • **Slow or uncoordinated hand movement** — spilling drinks, fumbling cash, dropping a phone, struggling to grip a beer mug. • **Flushed face or sweating disproportionate** to the room temperature. • **Strong smell of alcohol** on the breath or coming from the body — present even when they're not drinking right then. • **Falling asleep at the bar** — a customer who is dozing or 'micro-napping' between sips is past the cut-off line.

[callout/tip] **One sign isn't enough; a pattern is.** A single bloodshot eye could be allergies. A loud laugh could be enthusiasm. The Montana 'apparent' standard is met when **several cues stack:** slurred speech AND unsteady walk, or loss of inhibition AND glassy eyes AND repetitive talking. Train yourself to look for the cluster, not the single tell.

[list/bullet] Early-warning cues (the 0.05–0.07 band) • Customer becomes more talkative, leans further forward, makes more direct eye contact. • Decision-making gets sloppier — orders the most expensive bottle, agrees to a bar tab they wouldn't agree to sober. • Slight delay between question and answer — they're processing slower even though they sound coherent. • Touches their face, hair, or the bar more often (small motor restlessness). • These customers are not legally over-served yet. The early-warning cues are the moment to slow down rather than continuing pace.

[callout/warning] **Tolerance hides the visible cues, not the impairment.**

• A regular at **0.18 BAC** may show none of the slurring, stumbling, or eye-glassiness. • Their motor cortex has trained around the alcohol — the surface signs disappear. • Their judgment, reaction time, and impairment are still compromised at the same BAC. • If you poured **6+ standard drinks** into a 200 lb customer in 2 hours, the BAC math is fixed — regardless of how steady their walk looks.

For service decisions, do not rely on "he looks fine" if drink count, pace, or behavior suggests impairment. (Civil dram-shop liability has its own statutory triggers under MCA 27-1-710 — covered in Module 6.)

Section s3: The customer who arrives already drunk (scope: universal)

[text] Not every over-service problem starts at your bar. A customer who walked in from another establishment, a wedding reception, or a private party may already be in the 0.13–0.20 band before they order their first drink from you. **Montana law (MCA 16-3-301(4)(b)) does not require you to know they drank elsewhere.** It just requires you not to serve them while they meet the actual / apparent / obvious standard. Showing up impaired is on them; pouring the next drink is on you.

[callout/info] **The bar-hopping reality.** A bachelor party, a sports-team celebration, or a wedding reception will often arrive at your bar after 60–120 minutes of drinking elsewhere. Posture-check the group as they walk in: are anyone's eyes already glassy, anyone unsteady, anyone overly loud? **The first 90 seconds at the door are the cleanest moment to refuse.** Once you've poured a round, refusing the second is harder. Train your hostess and door staff to flag the group to the bartender before drinks land.

[text] **Refusing the first drink.** Refusing someone who has not ordered yet feels weirder than refusing a fourth pint. Use simple language: "I'm not going to be able to serve you alcohol tonight, but the kitchen's open and water's on me." The tone is neutral. You're not making a moral judgment, you're describing what's going to happen. If they push back, the answer is the same: "Tonight isn't going to work for alcohol — kitchen's open, water's on me." Repeat. Do not get drawn into a debate about how much they've had elsewhere.

Section s4: Intervention before refusal (scope: universal)

[text] Refusing service is the **last** step in a chain of choices. Before you cut someone off, you have several intervention tools that often work. Most customers respond well to friendly slowdowns when they feel the bartender is looking out for them rather than judging them. The intervention ladder below is the standard TIPS / ServSafe Alcohol model with Montana-specific tweaks.

[list/numbered] The intervention ladder • **Slow down.** Stop checking back as fast. The next round 'takes a while.' Restock something. Take 5 extra minutes between visits to the table. • **Switch.** Offer a non-alcoholic option. Water with lemon, a soda, a coffee, an N/A beer. Frame it as a favor: "Let me grab you a water in between, this round's a stronger pour." • **Food.** Appetizers slow absorption and reset the conversation. "Kitchen's still open — want me to grab you wings or fries?" • **Refuse.** A clean, kind, non-debate refusal of the next pour: "I'm going to switch you to water for the rest of tonight." • **Document.** Write the refusal and any incident in the house incident log. The log protects the licensee under MCA 27-1-710 if there is ever a dram-shop claim.

[text] **Reading the room before you escalate.** Before stepping up the ladder, take 30 seconds to gauge the rest of the table. Are friends signaling concern? Is the customer in a celebratory or a self-medicating mood? Are there kids nearby? Is the manager available if things turn? The right step on the ladder depends on the social context, not just the BAC. A wedding party that's having a good time responds well to step 1 (slow down) and step 3 (food). A grieving solo customer at the bar may need step 4 (clean refusal) immediately, with the manager on standby.

Section s5: Refusing cleanly (scope: universal)

[scenario] Q: What is the right next step? - Pour the fifth. She's a regular and you don't want to embarrass her. — feedback: Wrong. Refusing service when impairment cues appear is the rule under MCA 16-3-301(4)(b). 'Regular' is not an exception. Continuing to serve creates criminal, administrative, and civil risk; civil dram-shop liability under MCA 27-1-710 depends on its statutory triggers and the evidence available at the time of service. - Lean in and quietly say: 'I'm going to switch you to water for a bit. I've got you. Can I bring some bread?' ✓ correct — feedback: Right. You're refusing the next pour without making a scene. You're offering a soft path that lets her save face — exactly what step 4 of the intervention ladder calls for. - Tell her loudly across the bar: 'You're cut off!' — feedback: Wrong. Public shaming escalates situations and can trigger aggression. The refusal is right; the delivery is not. It also pulls neighboring customers into a confrontation that wasn't theirs. - Pretend you didn't hear and walk away. — feedback: Wrong. Avoidance leaves the situation unresolved and you've let the standard slip past. She'll either order from another bartender or leave thinking she got away with it.

[list/bullet] Refusal scripts that work • "I'm going to switch you to water for a bit. I want to make sure you get home okay." • "I can't pour you another one tonight. Can I call you a Lyft? It's on us." • "That's the law on me, not on you. I want to keep my license. Soda for the rest of the night?" • "Tonight isn't going to work for alcohol. Kitchen's open and water's on me. Want to see the menu?"

[scenario] Q: What's the right call? - Pour the round. She's the one ordering, not him. — feedback: Wrong. Letting a third party order around the cut-off can still count as furnishing alcohol to the cut-off customer in violation of MCA 16-3-301(4)(b) and creates criminal, administrative, and civil risk. Do not allow someone else to buy alcohol for a person you have refused. - Pour drinks for everyone except the cut-off customer. "I can serve the table — minus your friend who's switched to water." ✓ correct — feedback: Right. The cut-off applies to the customer, not the table. Be friendly but explicit: name the substitution, hand her the round minus the cut-off customer's drink, and bring water and a menu over yourself so the message is clear. - Pour the round but tell her to drink it herself. "I served you, what you do with it is your problem." — feedback: Wrong. Once the drink is on her tray, you may lose control of where it goes. If she gives it to the cut-off customer, the establishment can still face serious risk under MCA 16-3-301(4)(b) and the civil triggers in MCA 27-1-710. Don't pour the drink that you know is going to the cut-off person. - Refuse the entire round and ask the table to leave. — feedback: Wrong. The cut-off is on one customer, not the whole table. Refusing service to people who haven't done anything escalates needlessly. Serve the rest of the table normally; just substitute water for the cut-off customer.

[scenario] Q: What's the right call? - Pour the drink to defuse the situation. — feedback: Wrong. Once you've made the cut-off, reversing it under social pressure is how dram-shop exposure builds. If he drives home and crashes, the bar could be named in a claim because the surveillance video shows you served the fifth pint after a refusal. - Stay calm, keep your voice low. 'I hear you. I'm still going to switch you to water tonight. Want me to grab the manager so you can talk to her?' Signal the manager with your eyes. ✓ correct — feedback: Right. Lower your voice; he'll match. Refer up to the manager so the conversation gets out of the bar's social space. Document the refusal in the incident log immediately. If he escalates, the manager handles it; you've done your job. - Tell him to get out of the bar. — feedback: Wrong. Asking him to leave is sometimes correct, but it's the manager's call when the customer is already angry. Your job is to refuse the pour cleanly; the manager's job is to manage the trespass decision. - Argue back loudly so other customers see you're right. — feedback: Wrong. Public arguing makes the customer dig in and gives the manager less room to de-escalate. Stay calm, refer up.

[callout/warning] **The 911 trigger.** A BAC above **0.30** is a medical emergency, not a service problem.

Signs that put a customer in this band: • Unable to stay upright • Semi-conscious or unresponsive • Slow or shallow breathing • Blue-tinged lips • Vomiting while semi-conscious

The right call is 911. NOT: • A Lyft home • "Sleeping it off" in a booth or the parking lot • Walking them outside for fresh air

The risk doesn't necessarily end when the customer leaves. If the bar furnished alcohol in a way that meets one of MCA 27-1-710's statutory triggers, a later injury or death can still lead to a dram-shop claim.

Section s6: Documenting refusals and incidents (scope: state)

[callout/warning] **Document the refusal.** Most house policies require an incident-log entry every time you refuse service or have to escalate. The log creates the paper trail that protects the licensee under **MCA 27-1-710** if there is ever a dram-shop claim. A refusal you didn't write down is, for litigation purposes, a refusal that didn't happen.

[list/bullet] What to log on every refusal • **Date and time** of the refusal. • **Customer description** (gender, approximate age, what they were wearing, where they sat). • **Cues observed** (slurred speech, glassy eyes, etc.) — the specific cluster, not just "intoxicated." • **What you offered** (water, food, ride home, manager intervention). • **What happened next** — they accepted, they argued, they left, the manager took over. • **Your signature or initials** plus the manager's if they got involved.

[text] **How the log saves the bar.** Within **180 days of the alleged sale or service**, a plaintiff's lawyer may send certified-mail notice of a dram-shop claim under **MCA 27-1-710**. The notice will name the bar, name the customer, and allege over-service on a specific date — and may ask for the incident log, training records, surveillance video, and receipts from that night.

[list/bullet] Without the log vs. with the log • **Without the log:** the licensee is reconstructing the night two years later from memory. The plaintiff's version becomes the default narrative. • **With the log:** the licensee shows a contemporaneous record — "we served them at 7 PM, cut them off at 9:15 PM, offered water and a Lyft, customer left in a Lyft at 9:45 PM." • Montana courts expect a responsible-service program to keep this audit trail. The log is what separates a defensible refusal from a he-said-she-said.

Module quiz

Quiz: Module 3 Quiz (pass 80%) Qq1: Which phrase does Montana law (MCA 16-3-301(4)(b)) use as the over-service test? a) 'Visibly intoxicated' only b) 'Actually, apparently, or obviously intoxicated' ✓ c) 'Unable to consent' d) 'BAC over 0.08' Qq2: A regular customer at 0.18 BAC has 'trained' herself not to slur. Under Montana's three-prong standard, can you serve her? a) Yes, because the 'apparent' prong isn't met b) No — she's 'actually' intoxicated even if not visibly ✓ c) Yes, because she's a regular and tolerance is a defense d) Only if she signs a liability waiver Qq3: Which is NOT typically a behavioral cue of intoxication? a) Slurred speech b) Repeating the same story c) Asking for a glass of water ✓ d) Loud, overly familiar behavior Qq4: What is the FIRST step on the intervention ladder, before refusal? a) Slow down the next pour or check-back ✓ b) Call the police c) Throw them out d) Refuse to make eye contact Qq5: You've cut off a customer. His friend slides up and orders a round 'for the table' that includes the cut-

off customer's beer. What's the right call? a) Pour the round — she's the one ordering and paying b) Pour drinks for everyone except the cut-off customer; substitute water ✓ c) Refuse the entire round and ask the table to leave d) Pour the round but tell her not to share Qq6: A customer becomes semi-conscious at the bar with slow, shallow breathing and bluish lips. What's the right call? a) Call them a Lyft and send them home b) Let them sleep it off in a booth c) Call 911 — this is a medical emergency ✓ d) Walk them to the parking lot for fresh air Qq7: Write a one-line refusal script you would use on a regular customer who has had too much, in a way that lets them save face. keywords: water, switch, Lyft, ride, home, law, license, soda, switching, make sure, tonight, got you

Module 04: Checking Identification (Including Digital IDs)

Montana's acceptable ID list per ARM 42.13.902, with HB 196 digital IDs and tribal IDs

Estimated minutes: 20 · Type: mixed

Module learning outcomes:

- K5 (knowledge): Acceptable forms of identification in Montana (*ARM 42.13.902*)
- K6 (knowledge): Strategies underage persons use to obtain alcohol (*ARM 42.13.907(1)(d)*)
- P2 (performance): Calculate the latest valid DOB for a legal sale today (*ARM 42.13.907(1)(c)*)
- P3 (performance): Inspect a Montana driver's license (*ARM 42.13.902*)
- P4 (performance): Verify a government-certified digital ID per HB 196 (*MCA 16-4-1006(1)(c)* (*HB 196*))

Section s1: The Montana acceptable-ID list (scope: state)

State note: ARM 42.13.902 enumerates which IDs Montana accepts; the curriculum must show a graphic of each.

[text] Montana **ARM 42.13.902** lists exactly which IDs you may accept to verify age. **The list is closed.** If the customer hands you something that isn't on the list, you don't accept it — even if it has a photo, a DOB, and looks official.

[list/bullet] Acceptable forms of ID under ARM 42.13.902 • **Current state-issued or Canadian driver's license or ID card** — any US state or Canadian province. Must be unexpired. • **Current armed-services ID card** — active duty, reserve, retired, or dependent military ID issued by the DoD. • **Valid US passport or US passport card** — both work; the wallet-sized passport card is fully acceptable. • **Valid Montana temporary driver's license or temporary ID** — the paper interim issued while the permanent card is mailed. • **Valid Montana probationary driver's license** — typically held by drivers age 15–18; verify the DOB carefully. • **Valid Montana tribal identification** — issued by any of the seven federally recognized Montana tribes (see next chunk). • **Current US permanent resident card** (Form I-551 / 'green card') — federally issued credential showing photo, date of birth, and valid expiration. • **Government-certified digital ID** — added by HB 196, effective October 1, 2025. State-issued credential held in an official wallet or state-approved app. 📱 infographic spec: Acceptable-ID poster: side-by-side images of each acceptable form (Montana DL, Canadian DL,

military ID, US passport book + card, Montana temp license, probationary license, tribal ID example, US permanent resident card / I-551, digital ID in an official wallet). Each labeled. Brand: navy headers, teal accents, white background. Used as Phase 9 image asset.

[callout/info] **Montana tribal IDs — the seven federally recognized tribes:**

• Blackfeet Nation • Chippewa Cree (Rocky Boy's Reservation) • Confederated Salish & Kootenai (Flathead Reservation) • Crow Tribe • Fort Belknap Indian Community (Assiniboine & Gros Ventre) • Fort Peck (Assiniboine & Sioux) • Northern Cheyenne

A tribal ID issued by any of these tribes is acceptable under ARM 42.13.902. Out-of-state tribal IDs are NOT on the list — only IDs issued by federally recognized tribes located in Montana count.

[callout/law] **MCA 16-4-1006(1)(c) (HB 196):** Curriculum must cover procedures for checking identification, **including government-certified digital identification cards**. Falsifying or fraudulently using a digital ID is a separate offense under **MCA 16-6-305** (also amended by HB 196).

[callout/warning] **What is NOT on the list:**

• School / college / university ID cards • Library cards • Costco, Sam's Club, or other warehouse-club cards • Voter registration cards • Birth certificates (no photo) • Photocopies or photos of any of the above • Expired ID of any kind • Out-of-state tribal IDs

If the customer offers any of these, you must refuse. "It's all I have" is not a valid reason to make an exception.

Section s2: How to inspect a physical ID (scope: universal)

[list/numbered] The check sequence • **Take it in your own hand.** Don't read it through a wallet, phone case, or laminated holder. You need to feel the card. • **Look at the photo.** Match the person's hairline, ear shape, eye spacing, and jaw to the picture. Hair color and style change; bone structure does not. • **Calculate the date of birth.** Today's date minus 21 years is the line. If the DOB is later, the customer is under 21. • **Check the expiration date.** An expired ID is not acceptable. Refuse cleanly: "This expired in March, I can't use it tonight." • **Feel the card.** Real cards have uniform thickness, sharp corners, no peeling lamination, no bubbles. • **Tilt it.** The holographic state seal or security overlay should shift in the light. Flat, printed-on holograms are a fake-ID tell. • **Cross-check with a question.** "What's your zip code?" or "What's the middle name?" should be instant. A real owner doesn't pause to think.

[callout/tip] **The DOB math, made easy.**

• Subtract 21 from the current year. • Use today's month and day. • Anyone whose DOB is **after** that date is under 21.

Example for May 8, 2026: the cutoff DOB is **May 8, 2005**. Born May 8, 2005 or earlier = legal. Born May 9, 2005 or later = under 21.

[callout/info] **The vertical-vs-horizontal layout tell.** Most US states issue licenses in **horizontal layout for adults (21+)** and **vertical layout for minors (under 21)** so a glance at orientation tells

you the holder is provisionally underage. Montana follows this convention. **Vertical license = check the DOB even more carefully.** A horizontal license held by someone who looks young still gets the full inspection — but a vertical license should never be served without confirming the customer crossed 21 since the card was issued.  infographic spec: Side-by-side comparison: horizontal Montana DL (21+) vs. vertical Montana DL (under 21). Highlight the orientation difference plus the 'OVER 21' band that appears on adult-format cards. Brand colors. Used as poster in Module 3.

Section s3: Checking digital IDs (HB 196) (scope: state)

State note: Digital ID acceptance is new as of October 1, 2025. Curriculum must cover this explicitly.

[text] A government-certified digital ID is a state-issued credential the customer holds in their phone — Apple Wallet, Google Wallet, or a state-specific app. **It is NOT a screenshot of a license.** It is NOT a third-party app like ID.me. Only a government-issued digital credential counts under HB 196.

[list/numbered] Digital ID check sequence • **Ask the customer to present the credential through the official wallet or government-approved app** — not a screenshot or photo. The official presentation is interactive (the live credential responds to your verification step); a static image won't work. • **Look for the official state seal** or the issuing state's logo. Generic 'license' icons are not acceptable. • **Confirm the photo matches** the person. Same rules as physical ID: bone structure, ear shape, eye spacing. • **Read the date of birth** and apply the same DOB math. • **Check expiration.** The digital credential expires when the underlying physical ID does. • **If the customer hands you their unlocked phone** instead of presenting the credential, ask them to present it properly. A phone screen showing a website is not a digital ID.

[callout/warning] **Falsifying a digital ID is a separate offense** under MCA 16-6-305 (HB 196 amendment). Penalties stack on top of the underlying minor-in-possession charge.

If you suspect a fake digital ID: • Refuse the sale. • Document the incident in the log. • Don't try to seize the phone or take a screenshot. • Call the manager.

Section s4: Spotting fakes (scope: universal)

[list/bullet] Red flags on physical IDs • **Lamination peeling** or bubbling at the edges • **Photo doesn't match** (different ear shape, eye spacing, hairline that wouldn't change with age) • **Holographic seal looks flat** or printed instead of shifting in the light • **Customer hesitates or panics** when asked their zip code, middle name, or DOB • **Out-of-state ID** for someone whose accent or other details don't match the state • **Card feels too thin or too thick**, or has rounded corners that should be sharp • **Two friends hand over IDs** and look at each other for the answers to your follow-up questions • **Vertical ID** held by someone who claims to be 25+ — vertical IDs are issued to under-21 holders  infographic spec: Fake-ID red-flags poster: 8 thumbnails of common tells (peeling lamination, mismatched photo, flat hologram, vertical ID claimed as 25+, etc.) with one-line captions. Brand colors. Used as poster.

[callout/info] **The two-friends pattern.** When two underage friends use a shared fake-ID pipeline, they often have rehearsed answers for the obvious questions (DOB, zip code) but **fail on the second-tier**

questions: "What's the middle name?" or "What's your sister's name?" The pause-and-look-at-friend tell is a high-confidence fake-ID signal even when the card itself looks decent.

Section s5: Common minor tactics (scope: universal)

[list/bullet] Tactics underage customers use • **The borrowed older sibling.** Underage customer borrows a 21+ sibling's real ID. Photo is close but not exact; ask the second-tier questions. • **The bathroom-pass swap.** A 21+ friend orders, then passes the drink to the underage friend in the bathroom or at a side table. • **The proxy buyer at the door.** A stranger or older friend offers to walk in and buy for the under-21 group hanging outside. • **The 'I left my ID in the car' move.** Customer says their ID is at the car, you let them in, they don't go back. No ID, no service — period. • **The crowd-rush.** A group of 4–6 enters together; the door staff scans the front of the line and waves the back through. Each person gets ID-checked, no exceptions. • **The fake-ID ring.** Mass-produced fakes from a single source. Often share a typeface, the same hologram pattern, the same 'state' for an out-of-state ID. If you see a second one in a week with the same odd font, the manager should know.

[callout/tip] **The bathroom-pass watch.** Walk the floor. If the same customer keeps ordering drinks but never has them in front of them when you swing back, follow the drink. The pass-off to a minor is the most common after-the-fact dram-shop violation in college towns. Document the moment you see the drink change hands.

Section s6: Refusing at the door, cleanly (scope: universal)

[text] Refusing an ID at the door is the lowest-friction refusal in alcohol service. The customer hasn't ordered yet. There's no tab to dispute, no half-finished drink to take away. **Get good at this and most of your refusal work is done before service starts.**

[list/bullet] Door-refusal scripts • **Expired ID:** "This expired in March — I can't take it tonight. Got anything else?" • **Not on the acceptable list:** "School IDs aren't on Montana's list. I need a driver's license, passport, or military ID." • **Suspicious fake:** "I'm not able to verify this one tonight. Sorry." Hand it back, do not seize it. Document. • **Photo doesn't match:** "The photo doesn't match — I can't verify this is you. Got another ID?" • **ID in the car:** "No ID, no entry. We'll be here when you come back with it."

[callout/warning] **Don't seize a suspected fake ID.** Hand it back. Some bouncers grab the card and say "I'm keeping this." Montana courts have ruled this can expose the licensee to a conversion claim. The right move:

- Hand the ID back.
- Refuse entry / refuse service.
- Document description, time, ID details (state, ID number, name).
- Note the description of the customer for a possible police report.

Let law enforcement decide what happens to the card — that's not the bartender's job.

Section s7: Two scenarios you'll see at the door (scope: state)

[scenario] Q: What is the customer's age, and can you serve them? - 21 years old; serve them. ✓ correct — feedback: Correct. They turned 21 on March 15, 2026. Today (May 8) is after that date. Serving is legal. - 20 years old; refuse. — feedback: Wrong. They turned 21 in March of this year, so they are 21 today. - Refuse to verify because the year (2005) is the cutoff year. — feedback: Wrong. The math is exact: today's full date minus 21 years. They have already crossed the line. - Ask for a second form of ID just in case. — feedback: Optional but not required if the primary ID is valid. The math is clean.

[scenario] Q: What's the right call? - Refuse the sale, hand the phone back, document. ✓ correct — feedback: Right. A digital ID that cannot be presented through the official wallet or government-approved app is not acceptable. A static screenshot or photo is not a valid digital ID under HB 196. Refuse, document, do not try to seize the phone. - Accept it because Apple Wallet is government-certified. — feedback: Wrong. Apple Wallet is the holder, not the issuer. The credential inside has to be one your state of issue actually issued through the digital-ID program. A static screenshot doesn't qualify. - Take the phone and try to refresh the screen yourself. — feedback: Wrong. Don't take the phone. The customer presents; you verify what's presented. If it doesn't verify, refuse. - Accept it but write it down for the manager later. — feedback: Wrong. "Accepting under suspicion" exposes the licensee under MCA 16-6-305 (HB 196). If the credential doesn't verify, you must refuse on the spot.

Module quiz

Quiz: Module 4 Quiz (pass 80%) Qq1: Which of the following is NOT acceptable as ID under ARM 42.13.902? a) A current Canadian driver's license b) A valid US passport card c) A photocopy of the customer's driver's license ✓ d) A Montana tribal ID issued by a federally recognized Montana tribe Qq2: What was added to Montana's acceptable-ID rules by HB 196 in October 2025? a) Government-certified digital ID cards ✓ b) School ID cards c) Library cards d) Voter registration cards Qq3: If today is May 8, 2026, what is the LATEST DOB on a customer's ID that still makes them legal to serve? a) May 8, 2004 b) May 8, 2005 ✓ c) May 8, 2007 d) January 1, 2005 Qq4: A screenshot of a state ID on the customer's phone counts as a digital ID under HB 196. true) True false) False ✓ Qq5: Name two physical signs that an ID might be fake. keywords: lamination, peeling, bubbling, hologram, thin, thick, rounded corners, photo, doesn't match, ear, hairline, bubble, vertical Qq6: If you suspect a digital ID has been falsified, what is the right immediate action? a) Call the police on the spot b) Refuse the sale, hand the phone back, and document the incident in the log ✓ c) Confiscate the customer's phone d) Accept it and flag for the manager later Qq7: A vertical-layout driver's license is typically issued to whom? a) Adults age 21 and older b) Holders under age 21 ✓ c) Commercial drivers d) Military personnel Qq8: How many federally recognized tribes in Montana issue tribal IDs that are acceptable under ARM 42.13.902? a) 3 b) 5 c) 7 ✓ d) 10

Module 05: Sales to Minors

ARM 42.13.101 progressive penalties, MCA 16-6-305, and the narrow family exception

Estimated minutes: 10 · Type: state_specific

Module learning outcomes:

- K7 (knowledge): ARM 42.13.101 progressive penalty schedule (*ARM 42.13.101*)
- K8 (knowledge): MCA 16-6-305 and its narrow family, medical, pharmacy, and religious-observance exceptions (nonintoxicating quantity only) (*MCA 16-6-305*)
- P5 (performance): Apply the family exception correctly (*MCA 16-6-305*)

Section s1: The general rule (scope: state)

[callout/law] **MCA 16-6-305(1)**: It is unlawful to sell, give, or otherwise provide alcoholic beverages to a person under **21 years of age**, except for the narrow statutory carve-outs covered below (provision in a nonintoxicating quantity by parent/guardian, medicinal provision by physician/dentist, pharmacist with prescription, or minister/priest in connection with religious observance).

[text] **Selling to a minor is the single highest-risk error a server can make.** Montana takes a progressive view: the licensee's penalty escalates with each offense in a 3-year window, and the server can be charged personally too.

[callout/info] **What counts as an offense.** Any of these triggers an entry on the licensee's record:

- A successful undercover compliance check (the Montana DOR or local police send a 19- or 20-year-old in with a real ID and you serve them)
- A documented sale to a minor that's later proven (often through an MIP arrest where the minor names the bar)
- A self-reported violation during a routine inspection

Paid promotional events with under-21 attendance count if alcohol is sold or given. The 3-year window resets on each new offense, but the prior counts stay on the record for repeat-offender escalation.

Section s2: ARM 42.13.101 progressive penalty schedule (scope: state)

[list/numbered] Per offense in any 3-year period • **1st offense**: \$250 fine • **2nd offense**: \$1,000 fine • **3rd offense**: \$1,500 fine + up to **20-day license suspension** • **4th offense**: **license revocation** 
 infographic spec: Penalty-card poster: 4 stacked rows showing offense # → fine → license consequence, color-graded from green/yellow/orange/red as the offenses escalate. Brand colors. Used as Module 5 graphic.

[callout/warning] **The licensee carries the fine — but you the server can be charged separately.**

- Criminal misdemeanor under **MCA 16-6-305**: up to **\$500 fine**, up to **6 months in jail**, or both. • Plus whatever the licensee fires you over. • Plus the dram-shop civil exposure under **MCA 27-1-710** if the minor went on to harm themselves or someone else.

A single sale-to-minor can produce three separate consequences for the server: criminal, employment, civil.

[callout/info] **The placard requirement.** **MCA 16-3-301(6)** also requires the licensee to display a placard at the point of sale stating that selling to minors is prohibited. If a routine compliance check finds the placard missing, that is a **separate citation** on top of any sale-to-minor case. Make sure your manager keeps a current placard visible at every register and bar station.

Section s3: The narrow family/medical/religious exceptions (MCA 16-6-305) (scope: state)

State note: MCA 16-6-305(1)(a) lists a tightly limited set of permitted providers, each tied to a 'nonintoxicating quantity.' Follow house policy and manager guidance before applying any exception.

[text] Montana has a tightly limited set of statutory exceptions under MCA 16-6-305(1)(a). A person under 21 may be provided an alcoholic beverage only in a **nonintoxicating quantity** and only by: (i) the person's **parent or legal guardian**, (ii) a **physician or dentist for medicinal purposes**, (iii) a **licensed pharmacist upon the prescription of a physician**, or (iv) an **ordained minister or priest in connection with a religious observance**. The exception never permits intoxication or over-service. 'Nonintoxicating quantity' is defined in the statute as a quantity that does not produce a blood/breath/urine alcohol concentration above 0.05 or substantial/visible mental or physical impairment.

[list/bullet] Conditions for the exception • **Nonintoxicating quantity only**. MCA 16-6-305(1)(c) defines this as a quantity that does NOT produce a BAC above 0.05 or substantial/visible mental or physical impairment. The exception never permits intoxication or over-service. • **Provider must be one of the four listed in MCA 16-6-305(1)(a)**: parent or legal guardian; physician or dentist (medicinal); licensed pharmacist (with prescription); ordained minister or priest (religious observance). No other relationship qualifies — siblings, friends, boyfriends/girlfriends, and stepparents without legal-guardian status do NOT qualify. • **Licensee opt-in is the practical gate on-premises**. Even when the statute permits the provision, the on-premises licensee sets house policy. Many establishments do not opt in. Always check the manager's standing rule before applying. • **The under-21 person never transacts with the bar**. The qualifying adult is the one ordering, paying, and accepting service. The under-21 person consumes only what the qualifying adult provides directly.

[callout/law] **MCA 16-6-305(1)(a) (statutory text)**: 'Except in the case of an alcoholic beverage provided in a nonintoxicating quantity to a person under 21 years of age by the person's parent or guardian, physician or dentist for medicinal purposes, a licensed pharmacist upon the prescription of a physician, or an ordained minister or priest in connection with a religious observance, a person may not sell or otherwise provide an alcoholic beverage to a person under 21 years of age.'

[scenario] Q: What is the right move? - Refuse politely — without a house policy enabling the statutory exception, you cannot serve a person under 21 on the licensed premises. ✓ correct — feedback: Right. Even where MCA 16-6-305(1)(a) authorizes a parent to provide a nonintoxicating quantity, the on-premises licensee's house policy is the practical gate. No written opt-in = no service. Refuse cleanly; offer a non-alcoholic option. - Serve the wine — her father is at the table and that automatically triggers the exception. — feedback: Wrong. The presence of a parent does not automatically authorize on-premises service to an under-21 person — the statutory exception is for provision in a nonintoxicating quantity, and the licensee's house policy still governs whether the establishment opts in. - Serve any drink — it's her dad sitting next to her. — feedback: Wrong. The statutory exception is for a 'nonintoxicating quantity' only, never for unlimited service. And the licensee's opt-in still controls on-premises. - Ask the manager to confirm the house policy on the spot and follow whatever the manager says. — feedback: Reasonable as a working approach, but the legal default without a written opt-in is to refuse. Don't wait for ad-hoc manager calls on borderline service questions — the right answer is (a).

Section s4: Strategies minors use, and how to spot them (scope: universal)

[list/bullet] Common tactics • **Borrowed ID** from an older sibling or friend with a similar look. Photo close but not exact — ear shape and hairline rarely match. • **Online fake ID** — often with the wrong state's holographic seal, a slightly off typeface, or a vertical layout under a 25+ DOB. • **Proxy buyer** — an adult buys for them at the door or after the sale at the curb. Watch the parking lot. • **Distraction tactic** — a group orders together, the underage member ducks behind a friend at the moment of ID-check. • **Confidence tactic** — extra-loud, extra-confident, getting friendly with the bartender as a misdirection. • **The pass-back** — a 21+ orders a round, then passes the drink to the under-21 friend at the table or in a hallway.

[text] **The simplest defense is consistency.** Card every customer who looks under 30, every time. The moment you start making exceptions for "they look old enough" or "they're a regular," you're carrying personal liability for the next mistake. The licensee's penalty schedule applies to the bar; the criminal misdemeanor applies to you.

[scenario] Q: What's the right move? - Nothing — you sold to a 28-year-old, the rest is on him. — feedback: Wrong. If you SAW the proxy purchase happen and pour the next round anyway, courts treat it as constructive sale to the minor. Refuse the next sale to that customer; document; tell the manager. You can refuse a customer in the future based on observed proxy-buying. - Document the incident, alert the manager, and refuse future sales to that adult. ✓ correct — feedback: Right. You can't undo the sale that already happened, but you create a paper trail and prevent the same thing tomorrow. Frequent proxy buyers are a known fake-ID-ring tactic in Montana college towns. - Run out and confront him in the parking lot. — feedback: Wrong. Confrontation in the parking lot exposes you and the bar to a different set of legal risks. Document and let the manager handle the trespass decision. - Call the police as it's happening. — feedback: Reasonable in egregious cases (e.g., obvious minors clearly handing cash to him in front of you), but for a typical proxy-buy you saw after the fact, document-and-flag is the standard response. Manager can call PD if pattern repeats.

Module quiz

Quiz: Module 5 Quiz (pass 80%) Qq1: Under ARM 42.13.101, what is the fine for a 1st sale-to-minor offense in a 3-year period? a) \$100 b) \$250 ✓ c) \$500 d) \$1,000 Qq2: Under MCA 16-6-305(1)(a), which of the following is NOT one of the providers authorized to give alcohol to a person under 21 in a nonintoxicating quantity? a) Parent or legal guardian b) Physician or dentist (medicinal) c) Older sibling or stepparent without legal-guardian status ✓ d) Licensed pharmacist with a physician's prescription Qq3: What happens to the licensee on a 4th sale-to-minor offense in 3 years? a) \$5,000 fine b) License revocation ✓ c) 30-day suspension d) Mandatory retraining Qq4: The MCA 16-6-305(1)(a) exception authorizes provision of alcohol in any quantity, as long as the provider is a parent or legal guardian. true) True false) False ✓ Qq5: An adult buys a six-pack and you watch him hand it to teenagers waiting on the sidewalk. What's the right next step? a) Nothing — the sale was to an adult b) Document the incident, alert the manager, refuse future sales to that adult ✓ c) Run out and confront him in the parking lot d) Demand he return the six-pack Qq6: In addition to a fine, a server who sells to a minor can face which of the following under MCA 16-6-305? a) Up to 6 months in jail ✓ b) Up to 1 year in jail c) Up to 30 days in jail d) No jail time Qq7: Name two strategies underage customers commonly use to try to obtain alcohol.

keywords: fake ID, borrowed ID, older sibling, proxy buyer, proxy, adult buy, distraction, group, confidence, loud, online ID, pass-back

Module 06: Dram Shop and the Three Liability Types

MCA 27-1-710 three-trigger framework, \$250K caps, the 180-day notice deadline, and the 2-year statute of limitations

Estimated minutes: 20 · Type: state_specific

Module learning outcomes:

- K9 (knowledge): Three liability types: criminal, civil, administrative (*ARM 42.13.907 + MCA 27-1-710*)
- K10 (knowledge): Montana dram shop (MCA 27-1-710): three triggers, damage caps, notice, SOL (*MCA 27-1-710*)
- P7 (performance): Apply the three-trigger test to a real-world over-service scenario (*MCA 27-1-710(2)*)

Section s1: Three liability types — one event, three exposures (scope: state)

[text] When a server's mistake causes harm in Montana, **three different legal systems** can each take a swing at the licensee. They are independent, so any combination can happen at once.

[list/bullet] The three types • **Criminal.** The state charges the licensee or the server with a misdemeanor or felony. Examples: sale to a minor (**MCA 16-6-305**) or service to an obviously intoxicated person who causes a fatal crash. Penalties: fines, jail time, or both. • **Civil.** A third party (the injured driver, the family of a victim) sues for damages under the dram shop framework (**MCA 27-1-710**). This is where the big-money exposure lives. • **Administrative.** Montana CARD takes action against the license itself: progressive fines under **ARM 42.13.101**, suspension, or revocation. The license is the bar's ability to keep operating.  infographic spec: Three-circle Venn-style infographic: Criminal / Civil / Administrative, with center showing 'one over-service incident.' Brand colors. Use as Module 6 hero graphic.

[callout/warning] **One incident can trigger all three.** A server who knowingly serves a visibly intoxicated customer who then injures someone could face:

- A criminal charge against the server personally • A civil dram-shop suit against the licensee • An ARM 42.13.101 license penalty against the bar

Each runs on its own track and timeline. The criminal case might wrap in months; the civil suit can take years and seek hundreds of thousands of dollars; the administrative action can come from a single CARD compliance check the same week.

Section s2: Montana's dram shop framework: MCA 27-1-710 (scope: state)

State note: Montana's dram shop is restrictive compared to neighboring states. Liability requires one of three specific triggers.

[text] **MCA 27-1-710** is the **EXCLUSIVE remedy** for civil claims arising out of alcohol service in Montana. A plaintiff cannot go around the dram-shop statute by suing under general negligence or some other theory. The statute also limits when liability attaches: only when **one of three specific triggers** is met.

[list/numbered] The three triggers (MCA 27-1-710(2)) • **Underage sale without a reasonable effort to verify age.** Sold to a person under 21 AND the server did not make a reasonable attempt to determine the buyer's age (didn't check ID, or saw an obviously fake ID and ignored it). • **Service to a visibly intoxicated person.** Sold or served to a person visibly intoxicated AND the server **knew or should have known.** • **Forced or coerced consumption / alcohol-content fraud.** Server forced or coerced the customer to consume, or claimed the beverage contained no alcohol when it did. 🚦
infographic spec: Three-pillar infographic: each pillar = one trigger, with one-line description and an icon (ID-card icon, intoxicated-customer icon, gavel/coercion icon). Brand colors. Used as Module 6 graphic.

[callout/law] **MCA 27-1-710(2):** A licensee or its employee is **not liable** to a person injured by an intoxicated person, **except when one of the three triggers above applies.** Routine service to a customer who later causes injury is NOT, by itself, dram-shop liability.

[callout/info] **What 'reasonable effort to verify age' means.** Trigger #1 lets the bar off the hook on minor-sale liability **if** the server made a reasonable check.

Reasonable means: • Asked for and inspected an acceptable ID (per ARM 42.13.902) • Confirmed the photo matched • Did the DOB math • Acted on red flags if any showed up

If you carded carefully and the customer used a good-quality fake ID that fooled you, MCA 27-1-710(2)(a) protects the bar. The customer using the fake ID carries the criminal liability under MCA 16-6-305. **The defense disappears if there's evidence you didn't check at all or ignored an obvious tell.**

[callout/info] **What 'visibly intoxicated' means in court.** Trigger #2 turns on what the server **knew or should have known** at the moment of service. Plaintiffs argue the customer showed observable cues of impairment: slurring, stumbling, repeating, glassy eyes, mood swings.

The bar's defense is the incident log + employee training records: • "Our server was trained on the Montana standard." • "Our incident log shows we cut off two other customers that night." • "We did not observe visible impairment in the named customer."

Without records, the bar's defense becomes a he-said-she-said.

Section s3: Damage caps and procedure (scope: state)

[list/bullet] Caps and timeline (MCA 27-1-710(10)–(11)) • **\$250,000 cap on noneconomic damages** per event (pain, suffering, loss of consortium) • **\$250,000 cap on punitive damages** per event • **Economic damages are NOT capped** (medical bills, lost wages, future earnings) • **Plaintiff must give certified-mail notice within 180 days** of the sale or service. Missing the 180-day window means

losing the dram-shop claim. • **2-year statute of limitations** from the date of the sale or service to commence the civil action

[callout/info] **Why economic damages aren't capped.** A medical bill is a real number, not a discretionary jury award. If a victim has \$1.2 million in lifetime medical care from a crash, that figure goes into the verdict regardless of the noneconomic-damages cap. The \$250K caps only limit pain-and-suffering and punitive awards. **For a serious crash, the economic damages alone can dwarf the caps.**

[callout/warning] **MCA 27-1-710(6): banned evidence.** When deciding whether the customer was visibly intoxicated AT THE TIME of service, the jury **may not consider:**

- The customer's later BAC (e.g., the 0.18 reading at the crash scene three hours after they left)
- Signs of intoxication that appeared after they left
- Post-service conduct (a fight at a different bar, the crash itself)
- That the bar was running happy hour
- Hypothetical-BAC reconstructions by experts

The test is **what the server saw and reasonably inferred at the moment of service.** This is one of the strongest defenses in Montana — but it only works if the bar has the records to back up what they observed at the time.

Section s4: How a dram-shop case actually unfolds (scope: state)

[text] Most servers never see a dram-shop case. The ones who do experience it as a slow-motion process that starts months after the incident and stretches over years.

[list/bullet] Typical timeline • **Day 0:** Incident happens. Customer leaves the bar; later that night someone is injured. • **Days 1–60:** Police investigate the underlying crash or injury. Plaintiff hires an attorney. • **Within 180 days of the incident:** Plaintiff's attorney sends certified-mail **statutory notice** to the licensee. Notice triggers the bar's insurer; insurer assigns defense counsel. Notice served after day 180 forfeits the dram-shop claim. • **Days 180–365:** Discovery. Plaintiff requests the bar's incident log, employee training records, surveillance video, receipts, refusal log, comp slips, anything that documents the night. • **Months 12–24:** Depositions. The server who poured the drinks is deposed. Bar manager is deposed. Other servers and patrons may be subpoenaed. • **Months 12–24:** Mediation or settlement talks. Most cases settle here, often within insurance limits. • **Months 18–24+:** If no settlement, jury trial. The server testifies about what they observed at the time of service.

[callout/info] **What the bar's defense rests on at trial.** Two things, almost always:

- **The incident log** — contemporaneous notes that the bar refused other customers, monitored the room, knew the standard, and didn't see visible impairment in the named customer.
- **The training records** — proof that the server who poured the drinks was certified RASS-trained, knew the cues, and applied them.

Without either, the case becomes a credibility contest. With both, the bar is in a much stronger position to defend the claim, sometimes before trial.

Section s5: Two scenarios (scope: state)

[scenario] Q: Does Montana's dram-shop framework let the family win? - Yes — high BAC at the scene proves visible intoxication at the bar. — feedback: Wrong. MCA 27-1-710(6) prohibits using the post-service BAC as evidence of in-bar intoxication. The test is what the server saw at the time. - No — none of the three triggers apply. The customer was over 21, didn't appear intoxicated, and wasn't forced to drink. ✓ correct — feedback: Right. MCA 27-1-710 requires one of three specific triggers. Routine service to a customer who later does something terrible is NOT, by itself, dram-shop liability. The bar still needs the records to PROVE no visible intoxication was observed; without records, the case becomes a credibility contest. - Yes — the bar should have asked where he was driving. — feedback: Wrong. There is no statutory duty to interrogate a customer's driving plans. - Yes — any drinking and driving creates liability. — feedback: Wrong. The dram-shop test is narrow on purpose. General driving-after-drinking is not a trigger.

[scenario] Q: Which trigger applies, and what's the bar's exposure? - No trigger applies — he was a regular and tolerance is a defense. — feedback: Wrong. Tolerance is not a defense. The slurring, swaying, and arguing meet the visibly-intoxicated standard. Trigger #2 applies. - Trigger #2 (service to a visibly intoxicated person). The bar faces civil dram-shop exposure capped at \$250K noneconomic + \$250K punitive plus uncapped economic damages, plus the server's potential criminal exposure under MCA 16-3-301(4)(b), plus an ARM 42.13.101 license penalty. ✓ correct — feedback: Right. Trigger #2 is the most common dram-shop trigger and the slurring/swaying/arguing observable cues are what plaintiff's counsel will lean on. The bar's defense — incident log + training records — has to show the server saw none of those at the moment of pouring the seventh, which is hard when the cues were that visible. - Trigger #1 only — the bar should have ID'd him again. — feedback: Wrong. He was 21+, so trigger #1 (underage sale) doesn't apply. Trigger #2 (visible intoxication) is the live one. - No civil exposure if the bar's insurer covers the loss. — feedback: Wrong. Insurance can pay the verdict but doesn't make the dram-shop liability disappear. The bar still has the administrative-action exposure (license suspension/revocation) and the server still has personal criminal exposure.

Section s6: How to protect the bar before anything happens (scope: state)

[list/bullet] What every Montana bar should keep, every shift • **Incident log** — refusals, ID rejections, customer behavior of note, manager interventions, with date, time, and server's initials. • **Training records** — every server's RASS certificate and date of training. Pull a copy from CertReady's business dashboard once a quarter. • **Surveillance footage** — most house policies retain at least 30 days. For incidents that may produce a dram-shop claim, retain indefinitely. • **Lyft / Uber reimbursement tabs** — when the bar pays for a customer's ride home, the receipt becomes part of the night's defense file. • **House placard** at every register and bar station (per MCA 16-3-301(6)) — and a photo of it on file. • **Refusal log** — even the door bouncer's refused-entry list is admissible evidence that the establishment trains and enforces.

[callout/tip] **The hardest case for plaintiff's counsel** is a bar that can produce: a refusal log showing the bar cut off three other customers that night, a training record showing the server poured was certified six months ago, and surveillance video showing the customer in question did not slur or sway at the bar. That combination can make a dram-shop claim much harder to prove.

Module quiz

Quiz: Module 6 Quiz (pass 80%) Qq1: Which is NOT one of the three liability types covered in Montana RASS? a) Criminal b) Civil (dram shop) c) Administrative (license action) d) Tax ✓ Qq2: Under MCA 27-1-710, which of the following is NOT one of the three dram-shop triggers? a) Sale to a minor without a reasonable attempt to determine age b) Service to a visibly intoxicated person c) The customer drove home after drinking ✓ d) Forced or coerced consumption Qq3: What is the cap on noneconomic damages per event under MCA 27-1-710(10)? a) \$50,000 b) \$100,000 c) \$250,000 ✓ d) \$1,000,000 Qq4: Under MCA 27-1-710(6), the jury can use a customer's post-service BAC to prove they were visibly intoxicated at the bar. true) True false) False ✓ Qq5: Under MCA 27-1-710, by when must a plaintiff send certified-mail notice to a Montana licensee to preserve a dram-shop claim? a) Within 30 days of the incident b) Within 60 days of the incident c) Within 90 days of the incident d) Within 180 days of the sale or service ✓ Qq6: Which of the following is the strongest piece of evidence in defending a Montana dram-shop case? a) The bar's revenue numbers from the night b) A contemporaneous incident log + RASS training records for the server who poured ✓ c) Character references from regulars d) A handwritten statement from the bar owner Qq7: Are economic damages (medical bills, lost wages) capped under MCA 27-1-710? a) Yes, capped at \$250,000 b) Yes, capped at \$1,000,000 c) No — economic damages are uncapped ✓ d) Only if the plaintiff is a Montana resident Qq8: Briefly explain why MCA 27-1-710(2) is described as 'restrictive' compared to other states' dram-shop laws. keywords: three triggers, exclusive remedy, narrow, specific, no general negligence, exclusive, limited, 27-1-710

Module 07: Hours, Promotions, and Montana License Categories

MCA 16-3-304, no-below-posted-price rule, license types, special permits, and HB 211 delivery

Estimated minutes: 15 · Type: state_specific

Module learning outcomes:

- K11 (knowledge): Montana hours of sale and promotion rules (*MCA 16-3-304*)
- K12 (knowledge): Montana license categories (*Title 16 Ch. 4, MCA*)
- P8 (performance): Identify Montana sale-hour violations and license-class boundaries (*MCA 16-3-304, 16-2-104*)

Section s1: Hours of sale (scope: state)

[callout/law] **MCA 16-3-304:** All licensed retail establishments must be **closed for the sale of alcoholic beverages between 2:00 a.m. and 8:00 a.m.** daily. Local ordinances may further restrict — but never extend — the hours.

[list/bullet] Hour rules at a glance • **On-premise (all-beverage and beer/wine):** 8 a.m. to 2 a.m., seven days a week • **Off-premise (grocery, c-store, off-prem beer/wine):** 8 a.m. to 2 a.m., seven days a week, including Sundays • **Agency liquor stores** operate under separate rules (MCA 16-2-104 sets a maximum window of 8 a.m. to 2 a.m. for their hours; off-premise spirit retail is outside the on-premise scope of this course). • **Sunday on-premise sales follow the standard schedule.** There is no Sunday ban for licensed retail in Montana • **Restaurant beer/wine licenses** have separate food-

service-hour limits that may be stricter than the general 8 a.m.–2 a.m. state window. Follow the rule that applies to your specific license type and any local ordinance.

[callout/tip] **State law (MCA 16-3-304): no alcohol sales between 2 a.m. and 8 a.m.** Local ordinances may close earlier. A patron present at 2:01 a.m. with an open drink served by a licensed retailer is a violation, regardless of whether they paid for it before close.

Practical house-policy last-call cadence (typical industry timing — not statute): • Last call announced around **1:30 a.m.** • No new drinks poured after **1:45 a.m.** • All open containers off the bar/tables by **2:00 a.m.** • Patrons out the door shortly after

Door staff should announce the close progressively, not just at 2 a.m. — that's how you avoid the rush-and-resist scenario. Follow your local ordinance and house closing procedures.

[callout/info] **Local ordinances can be stricter than state law.** Some Montana cities and counties have earlier last-call requirements than the state 2 a.m. cap. Always follow the local rule that applies to your location — your city or county ordinance is the operating ceiling, the state hour is the outer cap.

Section s2: Promotions and the no-below-posted-price rule (scope: state)

[text] Montana does **not** have a numerical happy-hour limit (some states cap discount drinks at 50% or restrict happy hours to certain hours; Montana doesn't). What it has is a hard floor: **a licensee may not sell liquor below the price posted for that drink.**

[list/bullet] What's banned (no-below-posted-price) • **No BOGO on alcoholic beverages** where the second drink is effectively sold at \$0 — "buy one, get one free" violates the posted-price rule because the second drink is below its posted price • **No "free shot"** giveaways tied to a purchase • **No "two for one"** on cocktails • **No "first drink free"** for new customers • **No drink-token comps** without per-drink revenue at posted price

[list/bullet] What's typically allowed (verify with licensee) • **Posted-price drink specials** during clearly defined hours — the special price IS the posted price for those hours • **Themed nights** with food-and-drink combos where the alcohol is priced separately above the floor • **Other documented promotions** (e.g., birthday/wedding comp for the celebrant only, charity event pricing) — confirm with the licensee that the promotion complies with Montana pricing/advertising/DOR rules before running it.

[callout/warning] **Don't free-pour promotions without confirming compliance.** Montana alcohol promotions must comply with the posted-price rule, advertising rules, and any DOR/CARD requirements. Do not run BOGOs, free-drink giveaways, comp-drink campaigns, or alcohol-included promotions unless the licensee has confirmed the promotion is lawful — and, where required, secured any necessary DOR/CARD approval in advance. When in doubt, ask the licensee.

Section s3: Montana license categories you'll see at work (scope: state)

[list/bullet] Common license types • **All-beverage license:** full liquor on-premise (bars, casinos, hotel restaurants). Spirits + beer + wine. The most common bar license in Montana. • **Restaurant beer/wine:** beer and wine on-premise during food-service hours only. No spirits. The food rule means

alcohol revenue can't exceed a threshold of food revenue. • **Off-premise beer/wine:** grocery stores, convenience stores, gas stations. Sealed containers only. No spirits. • **Manufacturer license** (brewery / winery / distillery sample-room): limited on-site service tied to production. Tasting rooms have unique sample-size and time-limit rules. • **Agency liquor store** (state-contracted spirits retailer): the only off-premise outlet for spirits. State sets the wholesale price. • **Catering endorsement:** extends service hours and locations for special events with prior DOR notice. Adds an off-premise event slot to an on-premise base license. • **Special permit (16-4-301):** for community/charity events. **RASS training is NOT required** for special-permit holders — they're a separate regulatory regime. 📊 infographic spec: License-types comparison chart: 7 columns showing license type, what can be sold, on/off-premise, RASS required Y/N, hours. Brand colors. Used as Module 7 graphic.

[callout/warning] **Servers must be 18 or older** to serve alcohol in an open container in Montana (**MCA 39-2-306**). There is no minimum age to ring up sealed-container off-premise sales (subject to Fair Labor Standards Act federal rules).

[callout/info] **The catering endorsement, in practice.** A bar with an all-beverage license + a catering endorsement can pour at a wedding reception in a hotel banquet room across town that night. The endorsement requires:

- **Pre-event notice to DOR** (10 days minimum)
- **A licensed-employee server** at the event
- **No bring-your-own** by the host or guests
- **The same hours-of-service rules** as the base license

Without the endorsement, the base license can't legally pour at an off-site event.

Section s4: Third-party delivery (HB 211) (scope: state)

State note: HB 211, eff. Jan 1 2026. Renamed the Act and added delivery driver training as its own track.

[text] **HB 211** (eff. **January 1, 2026**) created a third-party alcohol delivery license for platforms like **DoorDash, Uber Eats, Grubhub, and Instacart**. It also renamed the Act to the **Responsible Alcohol Sales, SERVICE, and DELIVERY Act**. Drivers must complete the alcohol-delivery training required by Montana law and CARD rules before making deliveries. Delivery training may be separate from this on-premises RASS course.

[list/bullet] Delivery rules at a glance • Drivers must be **21 or older** and hold a valid driver's license. HB 211 also imposes background-check standards (e.g., no recent felony or DUI within a defined lookback period) — confirm current driver-eligibility criteria with CARD before relying on a specific number. • **Beer and table wine ONLY.** No spirits via third-party delivery • **Delivery hours** must fall within the time window allowed by HB 211 and CARD rules. Delivery is tied to the licensed retailer's sales window and may extend briefly after the retailer's sales cutoff — confirm the current rule before relying on a specific minute. • **ID-scanning technology** (or DOR-approved alternative) at delivery • **Refuse delivery to intoxicated recipients** or unmarked addresses / PO boxes • **Alcohol must be transported separately from the driver's reach during transit** (storage rules apply during delivery). • **Drivers complete delivery-specific training.** Note: this on-premises RASS course is for

service staff at licensed retailers, not for third-party delivery drivers. Confirm with CARD whether a driver needs a delivery-track training program in addition to or instead of this course.

Section s5: Two scenarios (scope: state)

[scenario] Q: What's the right call? - Pour the shot — it's still before 2 a.m. — feedback: Wrong. Pouring at 1:55 a.m. doesn't break MCA 16-3-304 by itself, but the customer can't realistically finish before 2 a.m. and the open container at 2:01 is a violation. Best practice is no new pours after 1:45. - Politely tell him last call has passed; offer water or a comp non-alcoholic drink. ✓ correct — feedback: Right. The 5-minute window is too tight to legally close out. Better to draw the line at 1:45 and walk the floor in the last 15 minutes clearing open containers. - Pour the shot but ask him to drink it before 2. — feedback: Wrong. The bar is on the hook for the open container regardless of who's holding it at 2:01. - Pour the shot and let him take it to go. — feedback: Wrong. On-premise licenses don't allow open-container takeout.

[scenario] Q: What's the right next step? - Run the BOGO — managers handle compliance. — feedback: Wrong. The no-below-posted-price rule applies regardless of management direction. Cocktails sold at \$0 (the second drink in the BOGO) violate MCA. Both the licensee and the server can be cited. - Pull the manager aside, point to the posted-price rule, and ask whether the licensee has confirmed this promotion complies with Montana DOR/CARD requirements. ✓ correct — feedback: Right. A BOGO or free-drink promotion is high risk because the second drink may be treated as below posted price. Do not run it unless the licensee has confirmed it is lawful and any required DOR/CARD approval has been obtained. If the manager pushes back, escalate to the licensee or refuse to pour. - Run it but only on customers you know are 21+. — feedback: Wrong. The age of the customer is irrelevant to the no-below-posted-price rule. The pricing violation is independent of who's drinking. - Run a discount instead — half-off cocktails. — feedback: Half-off is workable only if the discounted price IS the posted price for that hour and the licensee has confirmed the promotion complies with Montana posted-price/advertising/DOR rules. Without that confirmation, you're still in citation territory.

Module quiz

Quiz: Module 7 Quiz (pass 80%) Qq1: Under MCA 16-3-304, when must a Montana licensed retailer be closed for alcohol sales? a) Midnight to 6 a.m. b) 1 a.m. to 7 a.m. c) 2 a.m. to 8 a.m. ✓ d) 3 a.m. to 9 a.m. Qq2: Montana allows licensees to run a 'two-for-one' on liquor cocktails as long as they don't advertise it. true) True false) False ✓ Qq3: Which Montana license can sell distilled spirits for on-premise consumption? a) All-beverage license ✓ b) Off-premise beer/wine c) Restaurant beer/wine d) Agency liquor store Qq4: Under HB 211, third-party delivery drivers may deliver: a) Beer and table wine only ✓ b) Spirits only c) Anything an off-prem store sells d) Beer, wine, and spirits Qq5: What is the minimum age to serve alcohol in an open container on premise in Montana (MCA 39-2-306)? a) 16 b) 18 ✓ c) 19 d) 21 Qq6: A holder of a Montana special permit (16-4-301) for a charity event must complete RASS training. true) True false) False ✓ Qq7: What is the practical "no new pours" cutoff for a 2 a.m. close, to avoid the open-container-at-2:01 violation? a) 1:30 a.m. b) 1:45 a.m. ✓ c) 1:55 a.m. d) 2:00 a.m. Qq8: List two requirements for a third-party delivery driver under HB 211. keywords: 21, valid DL, driver's license, training, delivery training, beer, table wine, no spirits, ID scanning, refuse intoxicated, delivery hours, approved address

Module 08: Montana DUI Law and the Server's Role

MCA 61-8-1002 per-se BACs, MCA 61-8-1016 implied consent, and MCA 61-8-1007 penalty escalation

Estimated minutes: 15 · Type: state_specific

Module learning outcomes:

- K13 (knowledge): Montana DUI per-se BACs and THC limit (*MCA 61-8-1002*)
- K14 (knowledge): Implied consent law (*MCA 61-8-1016*)
- K15 (knowledge): DUI penalty escalation 1st-4th offense (*MCA 61-8-1007*)
- P9 (performance): Estimate a customer's BAC against per-se limits and decide whether to call a ride (*MCA 61-8-1002*)

Section s1: Per-se BAC limits in Montana (scope: state)

[text] Montana, like every state, has **per-se BAC limits** — numbers that establish a per-se alcohol or drug driving offense without separate proof of impairment. **Per-se** literally means "by itself": the number is the offense. Below those limits, a driver can still be charged with DUI based on observed impairment, but the per-se thresholds are the absolute lines.

[list/bullet] Per-se thresholds (*MCA 61-8-1002*) • **0.08 BAC** for noncommercial drivers age 21+ — the standard adult driver • **0.04 BAC** for commercial drivers (CDL holders) — half the standard limit • **0.02 BAC** for drivers under 21 — Montana's zero-tolerance line • **5 ng/mL Delta-9 THC** in blood — the separate per-se limit for cannabis 

[callout/law] **MCA 61-8-1002:** A person commits a per-se DUI offense if their alcohol concentration meets the threshold above OR they had a Delta-9 THC concentration of **5 nanograms or more per milliliter of blood**.

[callout/info] **Drink-count translation for the standard driver.** A 160 lb adult typically reaches:

• **0.02 BAC** at about **1 standard drink** in an hour • **0.04 BAC** at about **2 drinks** in an hour • **0.08 BAC** at about **4 drinks** in an hour • **0.16 BAC** (aggravated DUI line) at about **8 drinks** in 2 hours

Body weight matters. A 110 lb adult hits each band on roughly half the drinks. A 220 lb adult on about 30% more.

[callout/warning] **Aggravated DUI** is a separate, harsher charge. It applies when:

• The driver's BAC is **0.16 or higher**, OR • The driver **refused a chemical test** AND has a prior DUI in the past 10 years

Aggravated DUI carries longer mandatory jail and higher fines than a regular first-offense DUI. A bar that serves a customer past 0.16 and into aggravated-DUI territory faces stronger plaintiff arguments in any later dram-shop suit.

Section s2: Implied consent (MCA 61-8-1016) (scope: state)

[text] When a person drives in Montana, they are **deemed by law to have consented** to a chemical test (breath, blood, or urine) on lawful arrest for DUI. The driver doesn't have to actually agree at the moment — the consent is built into the act of driving. **Refusing the test triggers an automatic license suspension, separate from the DUI itself.**

[list/bullet] Refusal penalties • **1st refusal:** 6-month license suspension • **2nd refusal within 5 years:** 1-year suspension • **The refusal itself is admissible** in court as evidence of consciousness of guilt • Refusal does NOT prevent the DUI charge — police can get a warrant for a forced blood draw under existing case law

[callout/info] **Why this matters at the bar.** A regular customer who's had four drinks may believe they can "just refuse the breathalyzer and beat it." That's a misconception worth correcting — politely, when relevant — because:

- Refusal still gets them a 6-month license suspension automatically
- The refusal is admissible at trial against them
- Police can get a warrant for a blood draw anyway
- The refusal stacks with any aggravated-DUI exposure they already have

The "refuse the test and walk" myth is one of the most common reasons impaired customers convince themselves it's safe to drive home.

Section s3: DUI penalty escalation (MCA 61-8-1007) (scope: state)

[list/numbered] Per offense • **1st offense: 24 hours to 6 months jail; \$600–\$1,000 fine;** 6-month license suspension; mandatory ACT (Assessment, Course, Treatment) program. (Enhanced to 48 hours to 1 year jail and \$1,200–\$2,000 fine if a passenger under 16 was in the vehicle.) • **2nd offense: 7 days–1 year jail; \$1,200–\$2,000 fine;** 6-month suspension; **ignition interlock device (IID)** required upon reinstatement • **3rd offense: 30 days–1 year jail; \$2,500–\$5,000 fine;** 1-year suspension; IID required • **4th offense: FELONY** (lifetime lookback). **13 months in custody, up to 5 years prison; \$5,000–\$10,000 fine;** long-term IID; loss of certain civil rights during sentence  infographic spec: DUI penalty-escalation table: 4 columns (1st/2nd/3rd/4th offense) × 4 rows (jail, fine, license, IID). Colors escalate green→yellow→orange→red. Brand. Used as Module 8 graphic.

[callout/warning] **The lifetime lookback on the 4th offense.** Unlike the per-se DUI counts, where some states have a 5- or 10-year window, **Montana counts every prior DUI on a person's record forever.** A first DUI at 22 and a fourth at 55 still triggers the felony — there is no "clean slate" period. This is one of the strictest lookback rules in the country.

[callout/info] **Why the server should know this.** When a customer at the bar is bragging about driving home or about a prior DUI, you now know what the next charge would cost them.

That helps you offer a ride or call their friend with confidence: this is real money, real jail, and a felony on the fourth strike. It's also a credibility check — if a customer tells you "I've been pulled over six times and never gotten DUI" and then asks for one more, you have a clearer sense of what's actually at stake for them.

Section s4: The server's role: keeping impaired customers off the road (scope: universal)

[text] You're not a cop and you don't have to estimate BACs. But you have **huge influence at the moment a customer might choose to drive**. Most servers underestimate how much a friendly intervention works. The vast majority of customers — even ones who pushed back at the cut-off — accept a soft ride offer once they're walking toward the door.

[list/bullet] Server toolkit at the door • **Offer a rideshare on the house**. Many establishments comp \$25 for a one-time Lyft or Uber. The cost is one drink; the savings (legal exposure + a customer's life) is everything. • **Call a friend or family member** listed in the customer's phone, with their consent. "Mom" or "home" is often listed. • **Hold their car keys (with consent)** while they sober up. Some bars have a designated key-hold board behind the bar. • **Walk them to a cab line** if there is one nearby and they refuse a rideshare. • **Document the intervention** in the incident log — covers the licensee under MCA 27-1-710 if there's ever a question about whether the bar tried to prevent driving. • **Don't tackle them or take keys without consent**. That's a different legal problem (false imprisonment, conversion). Persuasion and a comp ride is the lane.

[callout/tip] **Phrasing that works**. Customers respond to specifics, not generalities:

• "Let me grab you a Lyft, on us. Five minutes." • "Mind if I call your wife? Just a heads-up so she's expecting you." • "You can leave the car here tonight. We open at 11; come back tomorrow." • "Coffee while you wait for the ride? Kitchen's still got fries."

Generic "are you okay to drive?" gets "yeah I'm fine" 90% of the time. Specific, no-friction offers get a yes.

Section s5: Two scenarios (scope: state)

[scenario] Q: What's the right move? - Three blocks is fine. Let him go. — feedback: Wrong. His estimated BAC is 0.13–0.16 — well above 0.08, possibly into aggravated-DUI territory at 0.16. Distance doesn't matter to MCA 61-8-1002. The bar's dram-shop exposure under 27-1-710 doesn't end at the doorway. - "Let me grab you a Lyft, five minutes, on us. You can leave the car — we open at 11." Document. ✓ correct — feedback: Right. Specific no-friction offer. "On us" is the magic phrase. The car-stays-here option removes the only reason most customers refuse a ride. Document the intervention to protect the bar. - Take the keys out of his hand. — feedback: Wrong. Seizing keys without consent is conversion, possibly battery. Persuade, don't grab. - Tell him you're calling the police. — feedback: Reasonable as a last resort if persuasion fails and he's about to drive, but the friendly Lyft offer should be tried first. Threatening police usually backfires.

[scenario] Q: Anything different about how you serve a CDL holder? - No — he's off-duty, normal service. ✓ correct — feedback: Right. Off-duty CDL holders drink under the same 0.08 per-se BAC as everyone else. The 0.04 limit kicks in only when they're driving a commercial vehicle. Be friendly and serve as you would anyone. - Yes — he can't drink any alcohol because he holds a CDL. — feedback: Wrong. A CDL holder is allowed to consume alcohol off-duty. The 0.04 BAC limit applies only when operating a commercial vehicle. Refusing him would be discriminatory. - Yes — limit him to one beer. — feedback: Wrong. Same standard applies as for any other customer. Use the visible-intoxication test, not a CDL-

specific count. - Yes — ask to see his CDL before serving. — feedback: Wrong. The CDL is irrelevant to off-duty service. Standard ID check applies (same 21+ rule).

Module quiz

Quiz: Module 8 Quiz (pass 80%) Qq1: What is the per-se BAC limit for noncommercial drivers age 21+ in Montana? a) 0.05 b) 0.08 ✓ c) 0.10 d) 0.16 Qq2: What is the per-se BAC limit for drivers under 21 in Montana? a) 0.00 (any detectable) b) 0.02 ✓ c) 0.04 d) 0.08 Qq3: Under MCA 61-8-1016, what is the suspension for a 1st refusal of a chemical test? a) 30 days b) 90 days c) 6 months ✓ d) 1 year Qq4: At what offense does Montana DUI become a felony? a) 1st b) 2nd c) 3rd d) 4th ✓ Qq5: What is Montana's per-se Delta-9 THC limit (in blood)? a) 1 ng/mL b) 5 ng/mL ✓ c) 10 ng/mL d) There is no per-se THC limit Qq6: Aggravated DUI applies in Montana when: a) BAC is 0.10 or higher b) BAC is 0.16 or higher, or refused chemical test with prior DUI in 10 years ✓ c) Driver is under 25 d) Driver is on a motorcycle Qq7: Montana's lookback for counting prior DUIs toward the felony 4th-offense charge is: a) 5 years b) 10 years c) 20 years d) Lifetime — every prior DUI counts forever ✓ Qq8: Name two intervention tools a server can use to keep an impaired customer from driving home. keywords: rideshare, Lyft, Uber, call friend, family, hold keys, coffee, wait, ride, free ride, pickup, leave car

Final exam pool (60 questions)

Title: Montana RASS On-Premises: Final Exam **Pass:** 80% · **Per attempt:** 40 of 60 **Selection:** Each attempt draws 40 questions from the 60-question pool, ensuring every Performance Outcome and every module is covered. Tests applied understanding of Montana RASS — what to do in the moment — not memorization of citation numbers.

Pool:

- **MT-001** (module 01, outcomes K1): Q: Under MCA 16-4-1005, you hire a new bartender who starts March 1. By when must she finish RASS training to keep the licensee compliant? a) Before her first shift on March 1 b) Within 30 days (by March 31) c) Within 60 days (by April 30) ✓ d) Within 90 days (by May 30) explanation: MCA 16-4-1005: every employee must complete RASS within 60 days of hire.
- **MT-002** (module 01, outcomes K1): Q: Under MCA 16-4-1005, a server passed her RASS training on June 15, 2026. What's the deadline for her renewal? a) June 15, 2027 b) June 15, 2028 c) June 15, 2029 ✓ d) June 15, 2031 explanation: MCA 16-4-1005: renewal is required every 3 years.
- **MT-003** (module 02, outcomes K3): Q: Under MCA 16-1-106(4), a customer hands you a kombucha labeled 0.4% ABV. Is it 'alcoholic' under Montana law? a) Yes — any fermented drink counts b) Yes — 0.4% is above the threshold c) No — 0.4% is below the 0.5% statutory floor ✓ d) No — kombucha is exempt regardless of ABV explanation: MCA 16-1-106(4): a beverage is 'alcoholic' at >0.5% ABV. 0.4% is below the floor.
- **MT-004** (module 02, outcomes K3): Q: Which of these is closest to one standard drink? a) 16oz of 7.5% IPA b) 5oz of 12% wine ✓ c) 3oz of 40% spirits d) 12oz of 9% hard seltzer explanation: 5oz ×

12% = roughly one standard drink ($\approx 0.6\text{oz}$ pure alcohol).

- **MT-005** (module 02, outcomes K2): Q: A customer's BAC is 0.075 when she stops drinking at 9 PM. About what time does the average liver bring her back below 0.06? a) About 9:30 PM b) About 10 PM ✓ c) About 11 PM d) About 1 AM explanation: Average clearance is ~ 0.015 BAC per hour. From 0.075 to 0.06 = 0.015 = about 1 hour, so ~ 10 PM.
- **MT-006** (module 02, outcomes K2): Q: A regular heavy drinker who 'doesn't look drunk' is safe to keep serving. a) True b) False ✓ explanation: Tolerance is not a legal defense. Behavior, not appearance, governs the cut-off decision.
- **MT-007** (module 03, outcomes K4): Q: Under MCA 16-3-301(4)(b), a customer is laughing loudly and slurring slightly but says, 'I'm fine, I have a high tolerance.' What standard does Montana use to decide whether to keep serving? a) BAC over 0.08 b) Actually, apparently, or obviously intoxicated ✓ c) Visibly impaired only d) Unable to consent explanation: Montana's three-part standard under MCA 16-3-301(4)(b). Her statement about tolerance does not override what you can observe.
- **MT-008** (module 03, outcomes K4/P1): Q: Which is NOT typically a behavioral cue of intoxication? a) Slurred speech b) Repeating the same story c) Asking for water ✓ d) Loud, overly familiar behavior explanation: Asking for water is responsible behavior, not a sign of intoxication.
- **MT-009** (module 03, outcomes K4): Q: If a customer is a regular and you trust them, you can keep serving past visible intoxication. a) True b) False ✓ explanation: 'Regular' is not an exception under MCA 16-3-301(4)(b). The standard applies to every customer equally.
- **MT-010** (module 03, outcomes P6): Q: What is the FIRST step on the intervention ladder, before refusal? a) Slow down the next pour ✓ b) Call the police c) Throw them out d) Avoid eye contact explanation: Slow-down comes first; refusal is last. The ladder is: monitor $\rightarrow$ slow down $\rightarrow$ offer food/water $\rightarrow$ refuse.
- **MT-011** (module 03, outcomes K4): Q: Which is a physical (not behavioral) cue of intoxication? a) Glassy eyes ✓ b) Repeating stories c) Loud talking d) Bragging about drinking explanation: Glassy/bloodshot eyes are a physical cue. The other three are behavioral.
- **MT-012** (module 03, outcomes P6): Q: Refusal of service should be documented in the house incident log. a) True ✓ b) False explanation: Documentation is a core piece of the licensee's defense under MCA 27-1-710 if a dram-shop claim is later filed.
- **MT-013** (module 04, outcomes K5): Q: A customer hands you four IDs to choose from. Under ARM 42.13.902, which one is NOT acceptable? a) Current Canadian driver's license b) Valid US passport card c) Photocopy of a driver's license ✓ d) Montana tribal ID from a federally recognized tribe explanation: ARM 42.13.902 requires the original credential. Photocopies are never acceptable.
- **MT-014** (module 04, outcomes K5): Q: Montana's HB 196 (effective October 1, 2025) added a new acceptable ID type to ARM 42.13.902. What was added? a) School IDs b) Government-certified digital ID cards ✓ c) Library cards d) Voter registration explanation: HB 196 added government-

certified digital IDs (e.g. Apple Wallet / Google Wallet state credentials). Screenshots and photos still don't count.

- **MT-015** (module 04, outcomes P2): Q: If today is May 8, 2026, what is the LATEST date of birth on a customer's ID that still makes them legal to be served alcohol? a) May 8, 2004 b) May 8, 2005 ✓ c) May 8, 2007 d) January 1, 2005 explanation: Today minus 21 years = May 8, 2005. A DOB on or before that date means the customer has turned 21.
- **MT-016** (module 04, outcomes P4): Q: A customer hands you their phone showing a screenshot of their state ID. Does this count as a valid digital ID under HB 196? a) Yes — the photo is clear b) No — only government-issued digital credentials count ✓ c) Yes — if the screenshot is recent d) Only with manager approval explanation: HB 196 requires the credential to be presented from a government-certified app like Apple Wallet, Google Wallet, or the state's digital ID app — not a screenshot.
- **MT-017** (module 04, outcomes P3): Q: You're inspecting a physical driver's license at the bar. Which of these is a fake-ID red flag? a) Sharp corners b) Lamination peeling at the edges ✓ c) Holographic seal shifts in light d) Photo matches the customer explanation: Peeling lamination is a classic tampering indicator — the rest are signs of a genuine, intact ID.
- **MT-018** (module 04, outcomes P4/P6): Q: A customer presents a digital ID that you suspect has been falsified. What's the right immediate action? a) Call the police b) Refuse the sale and document the incident ✓ c) Confiscate the phone d) Ignore it — digital IDs are too new to challenge explanation: Refuse + document. Police escalation is rare and usually unnecessary. Confiscating the phone is unlawful.
- **MT-019** (module 04, outcomes K5): Q: A current armed-services ID is acceptable to verify age in Montana under ARM 42.13.902. a) True ✓ b) False explanation: ARM 42.13.902 explicitly lists current armed-services IDs as acceptable.
- **MT-020** (module 05, outcomes K7): Q: Under ARM 42.13.101, a licensee is cited for its FIRST sale-to-minor offense within a 3-year window. What administrative fine does the LICENSEE face (separate from any criminal charge against the server)? a) \$100 b) \$250 ✓ c) \$500 d) \$1,000 explanation: ARM 42.13.101 progressive schedule: 1st = \$250; 2nd = \$1,000; 3rd = \$1,500 + suspension; 4th = revocation.
- **MT-021** (module 05, outcomes K7): Q: Under ARM 42.13.101, a licensee has now been cited for its 4th sale-to-minor offense within a 3-year window. What's the administrative consequence? a) \$5,000 fine b) License revocation ✓ c) 30-day suspension d) Mandatory retraining explanation: Fourth offense in 3 years = revocation. The escalation pattern is the deterrent.
- **MT-022** (module 05, outcomes K8/P5): Q: Under MCA 16-6-305(1)(a), which of these is a permitted provider of an alcoholic beverage (in a nonintoxicating quantity) to a person under 21? a) Older sibling 21+ b) Parent or legal guardian ✓ c) 21+ friend or boyfriend/girlfriend d) Any adult 21+ at the table explanation: MCA 16-6-305(1)(a) lists four permitted providers: parent or legal guardian; physician/dentist (medicinal); licensed pharmacist (with prescription); ordained minister or priest (religious observance). Older siblings, friends, and other adults are not on the list.

- **MT-023** (module 05, outcomes K8): Q: Under MCA 16-6-305(1)(a), provision of alcohol to a person under 21 is limited to a 'nonintoxicating quantity.' a) True ✓ b) False explanation: MCA 16-6-305(1)(a) limits the exception to 'a nonintoxicating quantity,' defined in subsection (1)(c) as a quantity that does not produce a BAC above 0.05 or substantial/visible mental or physical impairment.
- **MT-024** (module 05, outcomes K6): Q: Which is a common strategy underage customers use to obtain alcohol? a) Asking the bartender by first name b) Borrowing an older sibling's ID ✓ c) Wearing a tie d) Sitting at the bar explanation: Borrowed-ID is the most common underage tactic. Compare the photo to the person carefully.
- **MT-025** (module 05, outcomes K7): Q: Under MCA 16-6-305, a server is convicted of selling to a minor. What is the maximum personal criminal penalty he could face? a) Up to \$500 fine and/or 6 months jail (criminal misdemeanor) ✓ b) \$1,000 fine only c) Loss of driver's license d) Probation only explanation: MCA 16-6-305: criminal misdemeanor with up to \$500 fine, up to 6 months jail, or both. Personal penalty separate from any administrative action against the licensee.
- **MT-026** (module 06, outcomes K9): Q: Which is NOT one of the three liability types a Montana licensee can face? a) Criminal b) Civil (dram shop) c) Administrative d) Tax ✓ explanation: Tax is not part of the alcohol-service liability framework. The three types are criminal, civil (dram shop), and administrative.
- **MT-027** (module 06, outcomes K10/P7): Q: A customer drives himself sober from your bar and crashes a week later. The crash victim sues your bar under MCA 27-1-710. Does this case meet any of the three dram shop triggers? a) Yes — driving home alone is a trigger b) Yes — any later crash creates liability c) No — none of the three triggers apply (sale-to-minor, service-to-visibly-intoxicated, or forced consumption) ✓ d) Yes — the bar should have asked about driving explanation: MCA 27-1-710 requires one of three specific triggers. Sober service that ends in a later, unrelated incident does not create dram shop exposure.
- **MT-028** (module 06, outcomes K10): Q: Under MCA 27-1-710(10), a Montana jury awards \$400,000 in noneconomic damages in a dram shop case. After the statutory cap, how much can the plaintiff actually collect for noneconomic damages? a) \$50,000 b) \$100,000 c) \$250,000 ✓ d) Full \$400,000 (no cap applies) explanation: MCA 27-1-710(10): noneconomic damages are capped at \$250,000 per dram shop event. Economic damages (medical, lost wages) are not capped.
- **MT-029** (module 06, outcomes K10): Q: Under MCA 27-1-710(6), a jury can use a customer's post-service BAC reading as evidence that they were visibly intoxicated AT THE TIME of service. a) True b) False ✓ explanation: MCA 27-1-710(6) explicitly bars post-service BAC and post-service conduct from the visibility analysis. Only what was observable at the bar counts.
- **MT-030** (module 06, outcomes K10): Q: An incident occurs on March 1, 2026. By what date must the injured party serve certified-mail notice on the licensee to preserve a Montana dram-shop claim? a) Within 30 days (by March 31) b) Within 60 days (by April 30) c) Within 90 days (by May 30) d) Within 180 days (by August 28) ✓ explanation: MCA 27-1-710 requires the injured party to serve certified-mail notice WITHIN 180 days of the sale or service. Notice served after day 180

forfeits the dram-shop claim. The civil action itself must commence within 2 years of the sale or service.

- **MT-031** (module 06, outcomes K10): Q: Under MCA 27-1-710, a dram shop incident occurs on April 1, 2026. What is the LATEST date the injured party can file suit, assuming no tolling? a) April 1, 2027 (1 year) b) April 1, 2028 (2 years) ✓ c) April 1, 2029 (3 years) d) April 1, 2031 (5 years) explanation: MCA 27-1-710 sets a 2-year statute of limitations from the date of the sale or service. The civil action must commence within that window.
- **MT-032** (module 06, outcomes K10/P7): Q: A 23-year-old has 3 beers in 2 hours, shows no signs of intoxication, then crashes 3 hours later at 0.18 BAC. Is your bar liable under MCA 27-1-710? a) Yes — high BAC proves it b) Yes — any drunk-driving incident creates liability c) No — none of the three triggers apply (no underage sale, no visible intoxication, no forced consumption) ✓ d) Yes — the bar should have asked about driving explanation: Routine sober-service that doesn't meet a trigger is not dram shop liability. The post-service BAC also can't be used to prove visible intoxication at the bar (MCA 27-1-710(6)).
- **MT-033** (module 07, outcomes K11): Q: Under MCA 16-3-304, your bar closes at 2 AM tonight. What is the EARLIEST you can serve alcohol the next morning? a) 6 AM b) 7 AM c) 8 AM ✓ d) 9 AM explanation: MCA 16-3-304: the alcohol-sales window is 8 AM to 2 AM daily. Closed 2 AM to 8 AM, no exceptions.
- **MT-034** (module 07, outcomes K11): Q: Montana allows licensees to run two-for-one cocktail promotions if they're not advertised. a) True b) False ✓ explanation: Montana's no-below-posted-price rule prohibits two-for-one and similar discount promotions, advertised or not.
- **MT-035** (module 07, outcomes K12): Q: A customer at your restaurant orders a whiskey neat. You hold a restaurant beer/wine license. Can you serve it? a) Yes — any on-premise license can serve spirits b) No — only the all-beverage license permits distilled spirits on premise ✓ c) Yes — with manager approval d) Yes — but only one per customer explanation: Only the all-beverage license permits distilled spirits on-premise. Restaurant beer/wine licenses are limited to beer and table wine.
- **MT-036** (module 07, outcomes K12): Q: Under HB 211, a third-party delivery driver picks up an order containing beer, table wine, and a bottle of vodka. Which can he legally deliver? a) Only the beer and table wine — HB 211 limits third-party delivery to those two ✓ b) Everything in the order c) Only the vodka d) Nothing — HB 211 banned third-party delivery explanation: HB 211 expressly limits third-party alcohol delivery to beer and table wine. Spirits cannot go through third-party delivery.
- **MT-037** (module 07, outcomes K12): Q: Under MCA 39-2-306, a 17-year-old applies for a job carrying open beers from the bar to tables at your restaurant. Is she old enough to do this work? a) Yes — Montana allows 16+ to serve b) No — the minimum age to serve open-container alcohol is 18 ✓ c) Yes — if a parent signs a waiver d) No — the minimum age is 21 explanation: MCA 39-2-306 ('Employment of persons under 18 years of age as bartenders prohibited') sets a single age threshold of 18 for bartenders, waiters, and waitresses whose duty is to serve customers purchasing alcoholic beverages. Always follow employer policy and any license-specific restrictions.

- **MT-038** (module 07, outcomes K12): Q: Under MCA 16-4-301, RASS training is required for special-permit holders (one-day permits, beer/wine festivals, etc.). a) True b) False ✓ explanation: Special-permit holders are exempt from the RASS requirement. The requirement applies to ongoing licensees and their employees.
- **MT-039** (module 08, outcomes K13): Q: Under Montana law, a 30-year-old non-commercial driver tests at 0.07 BAC. Has she crossed the per-se DUI threshold? a) Yes — 0.07 is above the 0.05 per-se limit b) No — she's just under the 0.08 per-se limit ✓ c) Yes — any reading is per-se DUI d) No — per-se requires 0.10 explanation: Per-se DUI for non-commercial drivers 21+ is 0.08 BAC. She's below it — but a DUI charge based on impairment is still possible.
- **MT-040** (module 08, outcomes K13): Q: Under Montana's zero-tolerance law for drivers under 21, an 18-year-old's BAC tests at 0.03. Is he over the per-se limit? a) No — 0.03 is below 0.04 b) Yes — 0.03 exceeds the 0.02 zero-tolerance limit ✓ c) No — he must hit 0.08 like adults d) Only with a refusal explanation: Montana zero-tolerance per-se limit for under-21 is 0.02 BAC.
- **MT-041** (module 08, outcomes K13): Q: Under federal and Montana CDL rules, a commercial truck driver tests at 0.05 BAC. Is he over the per-se DUI limit for CDL operators? a) No — he's below the standard 0.08 limit b) Yes — 0.05 is above the 0.04 CDL per-se limit ✓ c) No — 0.05 only applies to non-commercial drivers d) Yes — any reading is over for CDL explanation: CDL per-se DUI limit is 0.04 — half the standard 0.08. Federal rule, applied in Montana.
- **MT-042** (module 08, outcomes K13): Q: Under Montana law, a driver's blood test shows 6 ng/mL Delta-9 THC. Is he over the per-se cannabis-DUI limit? a) No — there is no per-se THC limit b) Yes — 6 is above the 5 ng/mL limit ✓ c) No — he's below the 10 ng/mL limit d) Yes — any positive reading is over explanation: Montana's per-se cannabis DUI limit is 5 ng/mL Delta-9 THC in blood.
- **MT-043** (module 08, outcomes K14): Q: Under MCA 61-8-1016, a driver who has never refused before refuses a chemical test at a traffic stop. What's her automatic license suspension? a) 30 days b) 90 days c) 6 months ✓ d) 1 year explanation: MCA 61-8-1016 implied-consent: 6-month automatic suspension on first refusal, 1 year on subsequent.
- **MT-044** (module 08, outcomes K15): Q: Under Montana DUI law (lifetime lookback), a driver picks up his next DUI conviction and now has 4 lifetime DUIs. What level of crime is this conviction? a) Civil infraction b) Misdemeanor c) Aggravated misdemeanor d) Felony ✓ explanation: Montana DUI becomes a felony at the 4th conviction (lifetime lookback).
- **MT-045** (module 08, outcomes K13): Q: Under Montana law, a driver tests at 0.18 BAC. What does this trigger beyond a standard DUI charge? a) Standard DUI only — the threshold for aggravated is 0.20 b) Aggravated DUI — she's at or above the 0.16 threshold ✓ c) Standard DUI — aggravated requires 0.10 d) Aggravated DUI — the threshold is 0.12 explanation: Montana aggravated DUI threshold is 0.16 BAC (or refusal-with-prior). 0.18 is above the threshold.
- **MT-046** (module 07, outcomes K11): Q: A restaurant beer/wine license is tied to which of the following? a) Food service hours (typically 11am-11pm) ✓ b) All-beverage hours (8am-2am) c) Off-premise hours d) No hour restriction explanation: Restaurant beer/wine licenses are tied to food-service hours — alcohol can only be served while food service is active.

- **MT-047** (module 02, outcomes K3): Q: About how many standard drinks are in a 16-ounce pour of 8% ABV craft beer? a) About 1 b) About 1.5 c) About 2 ✓ d) About 2.5 explanation: $16 \text{ oz} \times 8\% = 1.28 \text{ oz alcohol}$. One standard drink = 0.6 oz alcohol. $1.28 / 0.6 \approx 2$ standard drinks.
- **MT-048** (module 02, outcomes K2): Q: Which of these slows alcohol absorption the most? a) Drinking on an empty stomach b) Drinking while eating a meal ✓ c) Drinking quickly d) Drinking through a straw explanation: Food in the stomach delays gastric emptying, slowing how quickly alcohol reaches the small intestine where most absorption happens.
- **MT-049** (module 03, outcomes K4/P1): Q: A regular at the bar cuts off mid-sentence, repeats the same anecdote twice, and mishandles his card when paying. Under MCA 16-3-301(4)(b), what standard is most likely met? a) Tiredness, not intoxication b) Apparent intoxication under MCA 16-3-301(4)(b) ✓ c) Just a bad night d) Allergy reaction explanation: A cluster of cognitive cues (interrupted speech, repetition, motor mishandling) meets the 'apparently intoxicated' standard. Time to slow him down or cut off.
- **MT-050** (module 03, outcomes P6): Q: Which of these is the BEST refusal script when cutting off a regular customer? a) You're cut off, please leave. b) Hey, I'm switching you to water for a bit. I want to make sure you get home okay. ✓ c) Sorry, no more for you, please leave the bar. d) I cannot serve you any further alcoholic beverages today. explanation: Firm but warm. Offers a soft path. Lets the customer save face and reduces escalation risk.
- **MT-051** (module 03, outcomes P6/K10): Q: Why document a refusal in the incident log? a) So the next bartender knows b) To support the licensee's defense in any future MCA 27-1-710 dram shop claim ✓ c) To bill the customer d) For tax purposes explanation: Documentation is a core piece of the licensee's defense if a dram-shop claim is filed. Contemporaneous notes carry far more weight than memory at trial.
- **MT-052** (module 04, outcomes K5): Q: Which of these is NOT acceptable as ID under ARM 42.13.902? a) Current Montana driver's license b) Valid US passport card c) College student ID with photo ✓ d) Government-certified digital ID explanation: School IDs are not on the ARM 42.13.902 acceptable list. The other three are all acceptable.
- **MT-053** (module 04, outcomes K5): Q: A customer's Montana driver's license expired two days ago. May you accept it under ARM 42.13.902? a) Yes — a couple of days expired is fine b) No — an expired ID is not acceptable ✓ c) Yes — if the customer has another form of ID as backup d) Only with manager approval explanation: ARM 42.13.902 requires a current/valid ID. Expired is expired — refuse and ask for a different valid form.
- **MT-054** (module 05, outcomes K8/P5): Q: Which of these correctly describes MCA 16-6-305(1)(a)? a) Provision in a nonintoxicating quantity by parent/legal guardian, physician/dentist (medicinal), licensed pharmacist (with prescription), or ordained minister/priest (religious observance) ✓ b) Any 21+ adult may provide unlimited alcohol to an under-21 person at the table c) An older sibling 21+ may provide beer or wine in any quantity d) A spouse 21+ may provide spirits in a private home explanation: MCA 16-6-305(1)(a) lists exactly four permitted providers and limits each to a 'nonintoxicating quantity.' No other adult relationship qualifies, and no unlimited-quantity rule exists.

- **MT-055** (module 05, outcomes K8/P5): Q: A 19-year-old is at your restaurant alone (no parent or legal guardian present) and asks for a glass of wine. What do you do? a) Refuse — no permitted provider under MCA 16-6-305(1)(a) is on-site ✓ b) Serve it, she's close enough to 21 c) Ask her to call her parent on the phone for permission d) Make her sign a waiver explanation: MCA 16-6-305(1)(a) requires the permitted provider (parent/legal guardian, physician/dentist, pharmacist, or minister/priest) to be the one providing the alcohol in a nonintoxicating quantity. A phone call doesn't satisfy the statute.
- **MT-056** (module 06, outcomes K10): Q: Under MCA 27-1-710(6), which evidence is the jury BARRED from considering when deciding whether the customer was visibly intoxicated AT THE TIME of service? a) The customer's age b) Witness testimony from people in the bar at the time c) The customer's post-service BAC and post-service conduct ✓ d) How much the customer tipped explanation: MCA 27-1-710(6) bars hypothetical/post-service BAC and post-service signs/conduct from the visibility analysis. Only what was observable at the bar counts.
- **MT-057** (module 06, outcomes K10): Q: Under MCA 27-1-710's 2-year statute of limitations, from what date does the civil-action clock run? a) The date the licensee renews their RASS training b) The date of the alleged sale or service ✓ c) The date the plaintiff hires an attorney d) The date the certified-mail notice is received explanation: MCA 27-1-710 sets the 2-year clock from the date of the sale or service. The civil action must commence within that window.
- **MT-058** (module 08, outcomes K15): Q: Under MCA 61-8-1007, a driver is convicted of his FIRST DUI in Montana. What's the maximum jail time the judge can impose? a) Up to 3 months b) Up to 6 months ✓ c) Up to 9 months d) Up to 1 year explanation: MCA 61-8-1007(1) caps a 1st DUI at 6 months jail. Penalties escalate with each subsequent conviction.
- **MT-059** (module 08, outcomes K13): Q: A driver with a DUI conviction in the past 10 years refuses a chemical test at a traffic stop. What charge is added beyond standard DUI? a) Standard DUI only b) Aggravated DUI ✓ c) No additional charge d) DUI is dismissed because of the prior explanation: Aggravated DUI applies when the driver has a prior DUI in the past 10 years AND refuses a chemical test (or is at 0.16+ BAC).
- **MT-060** (module 07, outcomes K12): Q: What does a catering endorsement allow a Montana licensee to do? a) Extend service hours and locations for special events with prior DOR notice ✓ b) Sell distilled spirits at any hour c) Skip the RASS training requirement d) Sell alcohol to under-21 customers with parental consent explanation: Catering endorsement extends service hours and locations for special events with prior notice to DOR.